

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES				1. REQUISITION NO.		PAGE 1 OF 150	
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30							
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NO.		5. SOLICITATION NUMBER 36C77626B0007	
						6. SOLICITATION ISSUE DATE 05/06/2026	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Leslie Prather				b. TELEPHONE NO. (No Collect Calls) 216-447-8321	
						8. OFFER DUE DATE/LOCAL TIME 05-20-2026 14:00 EDT	
9. ISSUED BY Department of Veterans Affairs Program Contracting Activity Central 6100 Oak Tree Blvd, Suite 490 Independence OH 44131				10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☒ SET ASIDE: 10 % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM ☐ HUBZONE SMALL BUSINESS ☐ EDWOSB ☒ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ 8(A) NAICS: 238290 SIZE STANDARD: \$22 Million			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS Offeror agrees that Bid will remain valid for 90 days		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. RATING N/A	
						14. METHOD OF SOLICITATION ☐ RFQ ☒ IFB ☐ RFP	
15. DELIVER TO Department of Veterans Affairs Program Contract Activity Central 6100 Oak Tree Blvd, Suite 490 Independence OH 44131				16. ADMINISTERED BY Department of Veterans Affairs Program Contracting Activity Central 6100 Oak Tree Blvd, Suite 490 Independence OH 44131			
17a. CONTRACTOR/OFFEROR		FACILITY CODE		18a. PAYMENT WILL BE MADE BY Department of Veterans Affairs Financial Services Center Invoices to be Submitted Electronically https://www.fsc.va.gov/einvoice.asp e-Invoice Setup Info Phone 877-489-6135 PHONE: 877-353-9791 FAX: 512-460-5429			
TELEPHONE NO.		UEI:		EFT:			
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				☐ 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES See CONTINUATION Page			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
(Use Reverse and/or Attach Additional Sheets as Necessary)							
25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page						26. TOTAL AWARD AMOUNT (For Govt. Use Only)	
27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4, FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA						☒ ARE ☐ ARE NOT ATTACHED.	
27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4, FAR 52.212-5 IS ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED	
28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED						29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____, YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:	
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT)		31c. DATE SIGNED	

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SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT: Contracting Officer 36C776 TBD

Department of Veterans Affairs

Program Contracting Activity Central

6100 Oak Tree Blvd, Suite 490

Independence OH 44131

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☒ 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or

☐ 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly ☐

b. Semi-Annually ☐

c. Other ☒ Milestones Achieved See ATT 05 Milestone Payment Schedule

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 PRICE/COST SCHEDULE

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVIC ES	QUANTIT Y	UNI T	UNIT PRICE	AMOUNT
0001	Proj#506-26-760 is a SDVOSB set-aside for Elevator Modernization at Ann Arbor, MI Lieutenant Colonel Charles S. Kettles VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 454 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	1.00	JB		
0002	Proj#515-26-760 is a SDVOSB set-aside for Elevator Modernization at Battle Creek MI Battle Creek VAMC. The Contractor shall furnish all labor, materials, equipment, tools, transportation, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 336 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	1.00	JB		
0003		1.00	JB		

				Proj#657A5-26-760 is a SDVOSB set-aside for Elevator Modernization at Marion IL Marion VAMC. The Contractor shall furnish all labor, materials, equipment, tools, transportation, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 370 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0004		1.00	JB	Proj#648-26-760 is a SDVOSB set-aside for Elevator Modernization at Portland, OR Portland VAMC. The Contractor shall furnish all labor, materials, equipment, tools, transportation, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1193 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0005		1.00	JB	Proj#656-26-760 is a SDVOSB set-aside for Elevator Modernization at St Cloud, MN St Cloud VAMC. The Contractor shall furnish all labor, materials, equipment, tools, transportation, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems.

Contract Period: Base POP: 403 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0006	1.00	JB	
Proj#652-26-760 is a SDVOSB set-aside for Elevator Modernization at Richmond, VA Richmond VAMC. The Contractor shall furnish all labor, materials, equipment, tools, transportation, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 437 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0007	1.00	JB	
Proj#544-26-760 is a SDVOSB set-aside for Elevator Modernization at Columbia SC, WM Jennings Bryan Dorn VAMC. The Contractor shall furnish all labor, materials, equipment, tools, transportation, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 319 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0008	1.00	JB	
Proj#557-26-760 is a SDVOSB set-aside for Elevator Modernization at Dublin, GA Carl Vinson VAMC. The Contractor shall furnish all labor, materials, equipment, tools, transportation, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all			

			documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 336 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0009	1.00	JB			
			Proj#516-26-760 is a SDVOSB set-aside for Elevator Modernization Bay Pines, FL CW Bill Young VAMC. The Contractor shall furnish all labor, materials, equipment, tools, transportation, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 941 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0010	1.00	JB			
			Proj#548-26-760 is a SDVOSB set-aside for Elevator Modernization at West Palm Beach, FL Thomas H Corey VAMC. The Contractor shall furnish all labor, materials, equipment, tools, transportation, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 538 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0011	1.00	JB			

	Proj#573A4-26-760 is a SDVOSB set-aside for Elevator Modernization at Lake City, FL Lake City VAMC. The Contractor shall furnish all labor, materials, equipment, tools, transportation, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 420 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0012	1.00 JB Proj#673-26-760 is a SDVOSB set-aside for Elevator Modernization at Tampa, FL James A Haley Veterans Hospital . The Contractor shall furnish all labor, materials, equipment, tools, transportation, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 462 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0013	1.00 JB Proj#675-26-760 is a SDVOSB set-aside for Elevator Modernization at Orlando, FL Orlando VAMC. The Contractor shall furnish all labor, materials, equipment, tools, transportation, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1540 Calendar Days

PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0014	0.00 JB
Proj#518-26-760 Elevator Modernization at Bedford, MA Edith Nourse Rogers Memorial Veterans Hospital. The Contractor shall furnish all labor, materials, equipment, tools, transportation, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 361 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0015	0.00 JB
Proj#523A4-26-760 Elevator Modernization at West Roxbury, MA West Roxbury VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 588 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipmen	
0016	0.00 JB
Proj#523A5-26-760 Elevator Modernization at Brockton, MA Brockton VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction	

			elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 361 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0017	0.00	JB			
			Proj#608-26-760 Elevator Modernization at Manchester, NH Manchester VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 638 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0018	0.00	JB			
			Proj#631-26-760 Elevator Modernization at Leeds, MA Edward P Boland VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 336 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0019	0.00	JB			
			Proj#689-26-760 Elevator Modernization at West Haven, CT West Haven VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming		

			codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1621 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0020	0.00	JB		
			Proj#689A4-26-760 Elevator Modernization at Newington CT Newington VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 739 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0021	0.00	JB		
			Proj#538-26-760 Elevator Modernization at Chillicothe, OH Chillicothe VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 286 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0022	0.00	JB		
			Proj#541-26-760 Elevator Modernization at Cleveland, OH Louis Stokes Cleveland VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and	

			services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 815 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0023	0.00	JB		
			Proj#583-26-760 Elevator Modernization at Indianapolis , IN Richard L Roudebush VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 890 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0024	0.00	JB		
			Proj#610-26-760 Elevator Modernization at Marion, IN Marion VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 420 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0025	0.00	JB		

	Proj#589-26-760 Elevator Modernization at Kansas City, MO Kansas City VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 336 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0026	0.00 JB Proj#589A4-26-760 Elevator Modernization at Columbia, MO Harry S Truman Memorial Veterans Hospital. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 882 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0027	0.00 JB Proj#589A5-26-760 Elevator Modernization at Topeka, KS Colbery-O'Neil VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 582 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building

Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0028	0.00	JB	
Proj#589A6-26-760 Elevator Modernization at Leavenworth, KS Dwight D Eisenhower VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 412 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0029	0.00	JB	
Proj#589A7-26-760 Elevator Modernization at Wichita, KS Robert J Dole Department of VA Medical and Regional Office Center. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 361 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0030	0.00	JB	
Proj#657A0-26-760 Elevator Modernization at St Louis, MO ST Louis VAMC - Jefferson Barracks. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to,			

	hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 437 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0031	0.00 JB			
	Proj#657A4-26-760 Elevator Modernization at Poplar Bluff, MO John L Pershing VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 437 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0032	0.00 JB			
	Proj#580-26-760 Elevator Modernization at Houston, TX Michael E DeBakey VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1168 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0033	0.00 JB			
	Proj#598-26-760 Elevator Modernization at Little Rock, AR John L McClellan Memorial Veterans Hospital. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA).			

	This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 386 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0034	0.00 JB Proj#598A0-26-760 Elevator Modernization at North Little Rock, AR Eugene J Towbin Healthcare Center. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 689 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0035	0.00 JB Proj#667-26-760 Elevator Modernization at Shreveport, LA Overton Brooks VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 874 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0036	0.00 JB

	Proj#504-26-760 Elevator Modernization at Amarillo, TX Thomas E Creek VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 353 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0037	0.00 JB Proj#519-26-760 Elevator Modernization at Big Spring, TX George H O'Brien Jr VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 336 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0038	0.00 JB Proj#549-26-760 Elevator Modernization at Dallas, TX Dallas VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 664 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors

PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0039	0.00	JB	
Proj#549A4-26-760 Elevator Modernization at Bonham, TX Sam Rayburn Memorial Veteran Center. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 386 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0040	0.00	JB	
Proj#671-26-760 Elevator Modernization at San Antonio, TX Audie L Murphy Memorial Veterans Hospital. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 412 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0041	0.00	JB	
Proj#674-26-760 Elevator Modernization at Temple, TX Olin E Teague Veterans Center. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional,			

			code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 386 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0042	0.00	JB		Proj#674A4-26-760 Elevator Modernization at Waco, TX Doris Miller VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 336 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0043	0.00	JB		Proj#436-26-760 Elevator Modernization at Fort Harrison, MT Fort Harrison VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 336 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0044	0.00	JB		Proj#442-26-760 Elevator Modernization at Cheyenne, WY Cheyenne VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing

			all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 437 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0045	0.00	JB			
			Proj#575-26-760 Elevator Modernization at Grand Junction , CO Grand Junction VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 370 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0046	0.00	JB			
			Proj#623-26-760 Elevator Modernization at Muskogee, OK Jack C Montgomery VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 588 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0047	0.00	JB			
			Proj#635-26-760 Elevator Modernization at Oklahoma City, OK Oklahoma City VAMC. The Contractor shall furnish all		

			labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 462 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0048	0.00	JB	Proj#666-26-760 Elevator Modernization at Sheridan, WY Sheridan VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 412 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0049	0.00	JB	Proj#623-26-760JMI Elevator Modernization at Tulsa OK James Mountain Inhofe VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 353 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors

PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0050	0.00 JB
Proj#526-26-760 Elevator Modernization at Bronx, NY James J Peters VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1798 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0051	0.00 JB
Proj#528-26-760 Elevator Modernization at Buffalo, NY Buffalo VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1540 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0052	0.00 JB
Proj#528A4-26-760 Elevator Modernization at Batavia, NY Batavia VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base	

	POP: 538 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0053	0.00 JB
	Proj#528A5-26-760 Elevator Modernization at Canandaigua, NY Canandaigua VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 361 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0054	0.00 JB
	Proj#528A6-26-760 Elevator Modernization at Bath, NY Bath VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 370 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0055	0.00 JB
	Proj#528A7-26-760 Elevator Modernization at Syracuse, NY Syracuse VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction

			elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1624 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0056	0.00	JB			
			Proj#528A8-26-760 Elevator Modernization at Albany, NY Samuel S Stratton VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 319 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0057	0.00	JB			
			Proj#561A4-26-760 Elevator Modernization at Lyons, NJ Lyons VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 538 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0058	0.00	JB			
			Proj#620-26-760 Elevator Modernization at Montrose, NY Franklin Delano Roosevelt Hospital. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic		

			tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 386 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0059	0.00	JB		
			Proj#620A4-26-760 Elevator Modernization at Wappingers Falls, NY Castle Point VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 386 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0060	0.00	JB		
			Proj#630-26-760 Elevator Modernization at New York, NY Margaret Cochran Corbin VA Campus. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1825 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0061	0.00	JB		
			Proj#630A4-26-760 Elevator Modernization at Brooklyn, NY	

			Brooklyn VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1470 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0062	0.00	JB	Proj#630A4-26-761 Elevator Modernization at Queens, NY St Albans VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 412 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0063	0.00	JB	Proj#632-26-760 Elevator Modernization at Northport, NY Northport VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 412 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment

0064	0.00	JB		
Proj#653-26-760 Elevator Modernization at Roseburg, OR Roseburg VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 361 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment				
0065	0.00	JB		
Proj#663-26-760 Elevator Modernization at Seattle, WA Seattle VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1344 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment				
0066	0.00	JB		
Proj#663A4-26-760 Elevator Modernization at Tacoma, WA American Lake VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 386 Calendar Days				

PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0067	0.00 JB
Proj#593-26-760 Elevator Modernization at North Las Vegas, NV North Las Vegas VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1806 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0068	0.00 JB
Proj#654-26-760 Elevator Modernization at Reno, NV Ioannis A Lougaris VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 689 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0069	0.00 JB
Proj#662-26-760 Elevator Modernization at San Francisco, CA San Francisco VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional,	

			code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 412 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0070	0.00	JB	
			Proj#501-26-760 Elevator Modernization at Albuquerque, NM Raymond G Murphy VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 336 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0071	0.00	JB	
			Proj#600-26-760 Elevator Modernization at Long Beach, CA Tibor Rubin VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1750 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0072	0.00	JB	
			Proj#605-26-760 Elevator Modernization at Loma Linda, CA Jerry L Pettis Memorial Veterans Hospital. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff

			in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 588 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0073	0.00	JB		
			Proj#649-26-760 Elevator Modernization at Prescott, AZ Bob Stump VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 815 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0074	0.00	JB		
			Proj#664-26-760 Elevator Modernization at San Diego, CA Jennifer Moreno VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 353 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0075	1.00	JB		
			Proj#678-26-760 Elevator Modernization at Tucson, AZ Tucson VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services	

			necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 454 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0076	1.00	JB		
			Proj#691-26-760 Elevator Modernization at Los Angeles, CA West Los Angeles VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 454 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0077	1.00	JB		
			Proj#691A4-26-760 Elevator Modernization at Sepulveda, CA Sepulveda VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 538 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0078	1.00	JB		

				Proj#568-26-760 Elevator Modernization at Fort Meade, SD Fort Meade VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 437 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0079		1.00	JB	Proj#568A4-26-760 Elevator Modernization at Hot Springs, SD Hot Springs VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 697 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0080		1.00	JB	Proj#636-26-760 Elevator Modernization at Omaha, NE Omaha VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 361 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors

PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0081	1.00 JB	
Proj#636A6-26-760 Elevator Modernization at Des Moines, IA Des Moines VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 336 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0082	1.00 JB	
Proj#542-26-760 Elevator Modernization at Coatesville, PA Coatesville VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 538 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0083	1.00 JB	
Proj#642-26-760 Elevator Modernization at Philadelphia, PA Corporal Michael J Crescenz VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems.		

Contract Period: Base POP: 1562 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0084	1.00	JB	
Proj#646-26-760 Elevator Modernization at Pittsburgh, PA Pittsburgh VAMC - University Drive. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1533 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0085	1.00	JB	
Proj#646A4-26-760 Elevator Modernization at Pittsburgh, PA H John Heinz III VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 403 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment			
0086	1.00	JB	
Proj#693-26-760 Elevator Modernization at Wilkes-Barre, PA Wilkes-Barre VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming			

			codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 487 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0087	1.00	JB		
			Proj#512A5-26-760 Elevator Modernization at Perry Point, MD Perry Point VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 420 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0088	1.00	JB		
			Proj#581-26-760 Elevator Modernization at Huntington, WV Hershel "Woody" Williams VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1042 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0089	1.00	JB		
			Proj#613-26-760 Elevator Modernization at Martinsburg, WV Martinsburg VAMC. The Contractor shall furnish all labor,	

			materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 613 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0090	1.00	JB			
			Proj#688-26-760 Elevator Modernization at Washington DC Washington VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 336 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0091	1.00	JB			
			Proj#558-26-760 Elevator Modernization at Durham NC Durham VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 336 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0092	1.00	JB			

	Proj#590-26-760 Elevator Modernization at Hampton, VA Hampton VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 319 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0093	1.00 JB Proj#659-26-760 Elevator Modernization at Sailsbury, NC WG Bill Hefner Salisbury VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 588 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0094	1.00 JB Proj#508-26-760 Elevator Modernization at Atlanta/Decatur, GA Joseph Maxwell Cleland Atlanta VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 462 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building

Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0095	1.00 JB
Proj#521-26-760 Elevator Modernization at Birmingham, AL Birmingham VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1294 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0096	1.00 JB
Proj#534-26-760 Elevator Modernization at Charleston, SC Ralph H Johnson VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 336 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment	
0097	1.00 JB
Proj#619A4-26-760 Elevator Modernization at Tuskegee, AL Central Alabama VAMC-Tuskegee. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary	

			elevator systems. Contract Period: Base POP: 538 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0098	1.00	JB			
			Proj#679-26-760 Elevator Modernization at Tuscaloosa, AL Tuscaloosa VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP Begin: 437 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0099	1.00	JB			
			Proj#672-26-760 Elevator Modernization at San Juan, Puerto Rico San Juan VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 1394 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment		
0100	1.00	JB			
			Proj#614-26-760 Elevator Modernization at Memphis, TN Lt Col Luke Weathers Jr VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with		

	the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 336 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment
0101	1.00 JB _____ Proj#621-26-760 Elevator Modernization at Mountain Home, TN James H Quillen VAMC. The Contractor shall furnish all labor, materials, equipment, tools, supervision, and services necessary to perform complete elevator modernization work at Department of Veterans Affairs (VA). This includes providing all documentation, manuals, diagnostic tools, programming codes and training for VA operations staff in accordance with the specifications and Scope of Work. Modernization work shall include, but not be limited to, hydraulic elevators, traction elevators, and related systems, to deliver fully functional, code-compliant, and non-proprietary elevator systems. Contract Period: Base POP: 412 Calendar Days PRINCIPAL NAICS CODE: 238290 - Other Building Equipment Contractors PRODUCT/SERVICE CODE: J035 - Maintenance, Repair, and Rebuilding of Equipment - Service and Trade Equipment

NOTICE

1. This single solicitation will result in multiple awards. Each contract line item (CLIN) will be competed (bid) individually. Offerors may choose to submit bids on one, some, or all CLINs provided they meet set-aside restrictions if applicable. Following bid opening, awards will be made to the responsive bidder offering the lowest bid price for each CLIN. The Government intends to award all CLINs shortly after bid opening with the period of performance beginning on all CLINs at the time of award.
2. This solicitation contains Line Items 0001 – 0101. Each Line Item represents an elevator modernization service requirement at a separate and distinct project site.
3. Each individual Line Item (Base Bid) contains all the work for that project.
4. **Line Items 0001 (Base Bid) – 0013 (Base Bid)** are set-aside for SDVOSB concerns. Bids received from other than certified SDVOSBs for CLINS 0001-0013 will not be considered. Bids will be accepted from all SDVOSB offerors who submitted acceptable technical proposals in Step One. All SDVOSBs **must be listed as “certified”** in the SBA database at <https://search.certifications.sba.gov/>. Failure to be certified at the time of Step One and Step Two submissions, and at the time of award will result in Offeror’s bid being non-responsive.
5. **Line Items 0014 (Base Bid) – 0101 (Base Bid)** are unrestricted. Bids will be accepted from all offerors who submitted acceptable technical proposals in Step One.
6. Bidders must provide a lump sum price for each **Line Item 0001 (Base Bid) – 0101 (Base Bid)** that they bid on, using the above PRICE/COST SCHEDULE. There is no minimum or maximum limit on the number of CLINs an offeror may bid on, however offerors must comply

with set-aside restrictions as applicable, AND consider their ability and capacity to perform should they be the successful bidder. For this reason, bids will be opened in smaller groupings as detailed in Section 2.11 BID SUBMISSION. Bidders are required to submit pricing ONLY for the Line Items in those groupings for which they intend to compete. Failure to do so may render their bid nonresponsive.

7. Each Line Item (Line Item 0001 – Line Item 0101) will be evaluated and awarded individually. Award for each line item will be based solely on price.
8. Pricing must be submitted in **whole dollar values**. Do **NOT** include pricing in cents.
9. Contractor is required to fill in their Unique Entity Identifier associated with SAM.gov in Block No. 17a on Standard Form (SF) 1449.
10. PLEASE NOTE: FAR Clause 52.219-4 applies to Line Items 0014-0101 (Base Bid). See FAR 52.219-4, included in full text in this solicitation for full details.
11. PLEASE NOTE: The contractor agrees to attend any Post Award conference convened by the contracting activity or contract administration in accordance with FAR 42.302(a)(3).

INFORMATION REGARDING BIDDING MATERIAL, BID GUARANTEE AND BONDS

1.1 BID MATERIAL

Bid materials consisting of specifications, solicitation attachments and contract forms are included and/or attached as part of this Invitation for Bids (IFB). The VA will not provide printed copies of specifications. It is the responsibility of the offeror to obtain the bid materials in a time and manner sufficient to respond to this solicitation by the specified due date.

1.2 PAYMENT & PERFORMANCE BONDS

The offeror to whom award is made will be required to furnish two bonds. A Payment Bond shall be provided on Standard Form 1416 (SF 1416) and a Performance Bond shall be provided on Standard Form 1418 (SF 1418). Both bonds must be submitted in accordance with FAR 52.228-16 Performance and Payment Bonds – Other Than Construction (DEVIATION). Copies of SFs 1416 and 1418 may be obtained from <https://www.gsa.gov/forms>. A Bid Bond is not included in this solicitation, and therefore shall not be included with bids.

Security for Contract Financing Payments

(a) In accordance with FAR 32.202-4, the Government's obligation to make contract financing payments under this contract is conditioned upon the Contractor providing and maintaining adequate security in an amount at least equal to the maximum unliquidated amount of contract financing payments.

(b) The Contractor's performance bond furnished under FAR clause 52.228-16, Performance and Payment Bonds—Other Than Construction, shall constitute the security required by FAR 32.202-4 for all contract financing payments made under this contract. The penal sum of the performance bond shall be not less than 100 percent of the contract price, which the parties agree is at least equal to the maximum unliquidated amount of contract financing payments that may be outstanding at any time.

(c) The Contractor's surety, under the performance bond, guarantees repayment to the Government of all unliquidated contract financing payments made under this contract, up to the penal sum of the bond, in the event of Contractor default or failure to perform that results in a Government loss of such financing. This guarantee is in addition to, and not in lieu of, the surety's obligations to complete performance or otherwise remedy the Contractor's default under the bond and applicable law.

(d) The Contractor shall maintain the performance bond in full force and effect for the period during which any contract financing payments remain unliquidated. If the penal sum or enforceability of the performance bond is reduced, impaired, or contested in a manner that could affect the Government's security interest in the unliquidated contract financing payments, the Contractor shall, upon the Contracting Officer's written request, promptly provide additional security acceptable under FAR 32.202-4 in an amount sufficient to restore the required level of protection.

(e) Nothing in this provision limits the Government's rights and remedies under the performance bond, FAR part 28, or applicable law.

1.3 TAXES

Contractor must take into account FAR 52.229-3; "Federal, State and Local Taxes" (DEVIATION SEP 2025) in their pricing. The FAR clause provides guidance on taxes being applied to pricing.

INSTRUCTIONS, CONDITIONS, AND OTHER STATEMENTS TO OFFERORS

2.1 AVAILABILITY OF SOLICITATION DOCUMENTS

All Step One solicitation-related documents will be published to Contract Opportunities at <https://sam.gov/>.

All Step Two solicitation-related documents will be transmitted electronically directly to those Offeror's who were determined acceptable in Step One.

2.2 INVITATION FOR BIDS

This solicitation is being issued as an Invitation for Bid (IFB) in accordance with FAR 14.211 Two Step Sealed Bidding process. This single solicitation will result in multiple awards. The Government will evaluate technical proposals in Step One (PRICING WILL NOT BE EVALUATED IN STEP ONE). Offerors determined to be acceptable in Step One will move to Step Two, where pricing will be evaluated.

2.3 PARTIAL SDVOSB SET-ASIDE

Line Items 0001–0013 are set-aside for SDVOSB concerns only. Bids received from other than SDVOSBs for Line Items 0001–0013 will not be considered. Only bids from SDVOSBs that

submitted acceptable technical proposals in Step One will be accepted. Bidders on **Line Items 0001-0013** must include with their first bid the completed and signed **Attachment 08_CLINs 0001-0013 ONLY – VAAR 852.219-75 Limitations on Subcontracting**.

A joint venture may be considered eligible as an SDVOSB if the joint venture complies with the requirements in 13 CFR 128.402. To be considered eligible to receive award of a resulting contract, offerors must be certified as SDVOSBs by the U.S. Small Business Administration (SBA) and listed in the SBA certification database at the time of Step One technical proposal submission, Step Two bid submission and at time of award. Offers received for Line Items 0001-0013 from entities that are not certified SDVOSBs will not be considered. Failure to be certified at the time of each submission and at time of award will result in the offer being deemed non-responsive.

2.4 PARTIAL UNRESTRICTED

Line Items 0014-0101 are unrestricted, full and open competition. For **Line Items 0014-0101**, bids will be accepted from all responsible concerns, whether small or other than small, that submitted acceptable technical proposals in Step One.

All Large Business Concerns (those defined as large under NAICS Code 238290) that bid on **Line Items 0014-0101**, and are the apparent awardee, must submit their Small Business Subcontracting Plan, within 7 calendar days after request by the Contracting Officer. Failure to submit the small business subcontracting plan in accordance with FAR 52.219-9 and VAAR 852.219-70 will render that bidder ineligible for award and the Government may award to the next lowest bidder. For more information **See Section 2.21 below**.

2.5 SITE VISITS

(a) Formal site visits will be scheduled for each Item Number/CLIN listed in the Price/Cost Schedule. This site visit schedule will be released directly to those who submit acceptable technical proposals in Step One.

(b) This will be the only opportunity for potential bidders, made eligible by submitting acceptable technical proposals, to visit the sites. All eligible potential bidders, their subcontractors, and suppliers are strongly encouraged to attend this site visit.

(c) It is highly recommended that those who attend the pre-bid site visit for this project review all relevant technical data and specifications ahead of time. Due to the continued care of our veterans, there may be areas that cannot be accessed during the pre-bid site visit. Any questions regarding these areas can be addressed during the technical question period of the solicitation.

2.6 TECHNICAL QUESTIONS

Questions of a technical nature related to Step One must be submitted by prospective offerors via e-mail to: leslie.prather@va.gov and scott.elias@va.gov. The subject line of each e-mail must read: **36C77626B0007 - Elevator Modernization – Technical Questions**. Oral questions of a technical nature are not acceptable due to the possibility of misunderstanding or misinterpretation. **THE CUT-OFF DATE AND TIME FOR RECEIPT OF STEP ONE QUESTIONS IS Wednesday May 13, 2026 at 14:00 PM EDT.**

Questions of a technical nature related to Step Two must be submitted by prospective offerors via a link that will be provided only to those offerors who submitted acceptable technical proposals in Step One. Oral questions of a technical nature are not acceptable due to the possibility of misunderstanding or misinterpretation. **THE CUT-OFF DATE AND TIME FOR RECEIPT OF STEP TWO QUESTIONS** will be provided only to those offerors who submitted acceptable technical proposals in Step One.

2.7 AMENDMENTS

Amendments to this solicitation related to Step One will be posted at <https://sam.gov/>. Paper copies of the amendments will NOT be individually distributed. No other notification of Step One amendments will be provided. Potential offerors are advised that they are responsible for obtaining and acknowledging any amendments to Step One of the solicitation. Failure to acknowledge an amendment may result in your bid being considered non-responsive.

Amendments to this solicitation during Step Two will NOT be posted at <https://sam.gov/>. Paper copies of the amendments will NOT be individually distributed. Amendments issued during Step Two of this solicitation will be emailed directly to only those bidders who submitted acceptable technical proposals in Step One. No other notification of amendments will be provided. Potential Bidders are advised that they are responsible for acknowledging any amendments to Step Two of the solicitation. Failure to acknowledge an amendment may result in your bid being considered non-responsive.

2.8 PREPARATION OF BIDS

The Government will not pay for any costs incurred in preparation and submission of bids.

2.9 SELECTION PROCEDURES

This solicitation is issued as an Invitation for Bid (IFB) utilizing the two-step sealed bidding selection procedures in accordance with FAR 14.211-3. Step One of the solicitation is a request for submission of technical proposals and is detailed below. Step Two of the solicitation shall be prepared in accordance with FAR Part 14.3. The Government intends to award multiple contracts resulting from this solicitation. Award will be made on each CLIN to the responsible bidder who submitted an acceptable technical proposal during Step One, and was the lowest responsive bidder during Step Two (See FAR 52.214-10). The low bid will be evaluated by the Contracting Officer prior to award to confirm that is "a fair and reasonable price." A responsibility determination will be made in accordance with **FAR 9.1, Responsible Prospective Contractors**.

Offerors submitting Technical Proposals in response to this solicitation, not later than the closing date and time specified herein, and in accordance with the submission requirements will be considered for evaluation. Offerors will be rated either Acceptable or Unacceptable. **All factors are equally important and a rating of Acceptable must be achieved for Factor 1 Qualifications (Technical), Factor 2 Project Experience (Technical) and Factor 3 Past Performance (Technical) in order for the offeror to receive an Acceptable rating.** All Step One technical proposals shall be subject to evaluation by a team of Government personnel.

- A. Technical Proposals will be evaluated in accordance with the primary selection criteria as stated in this solicitation. These evaluations will determine the Technically Acceptable offerors for this particular requirement. All offerors found to be Unacceptable will receive a notice of unacceptability upon completion of the technical proposal evaluation, and final determination of unacceptability. Unsuccessful offerors may submit a written request for debrief.
- B. Each bidder may only submit one technical proposal. Bidders should submit Technical Proposals that are acceptable without additional explanation or information. The Government may make a final determination regarding a Technical Proposal's acceptability solely on the basis as submitted. The Government may proceed with the second step without requesting further information from any bidder. However, the Government may request additional information from bidders of bids that it considers reasonably susceptible of being made acceptable and may discuss bids with their bidders.

In Step Two, the Contracting Officer will consider awards based on bids that have acceptable technical proposals. Bidders should submit technical proposals that are acceptable without additional explanation or information. Only those Offerors who submit acceptable technical proposals will proceed to Step Two, the Sealed Bidding process. Step One technical proposals will be evaluated in accordance with the three (3) Non-Price evaluation factors listed below. Technical proposals **MUST NOT** include prices or pricing information.

Evaluations will be based on the following evaluation factors.

STEP ONE Technical Proposals

1. Factor 1: Qualifications (Technical)
2. Factor 2: Project Experience (Technical)
3. Factor 3: Past Performance (Technical)

STEP TWO Bid Submissions (Only open to those who submitted acceptable technical proposals in Step One)

1. Price

2.10 TECHNICAL PROPOSAL REQUIREMENTS (STEP ONE)

A. GENERAL:

1. Technical Proposals shall be based on solicitation document issued for IFB number 36C77626B0007. Technical Proposals will be in the format stipulated in this document.
2. Technical Proposals shall be received on or before the date and time specified in Block 8 of the SF 1449. **May 20, 2026 14:00 EDT.** There will be no public opening of the proposals.
3. Technical Proposal Submission:
 - i. Submit technical proposals via e-mail to: leslie.prather@va.gov and scott.elias@va.gov
 - ii. Emails are limited to five (5) MB.
 - iii. Only e-mail proposals will be accepted. Hard-copy proposals will not be accepted.
4. Page size for all technical proposal documents will be 8.5 x 11 inches, with 1-inch margins around the page perimeter. Pages will be single spaced. Each page shall count as one (1) page. Proposals shall be submitted using Times New Roman, with font no smaller than 11 point with normal proportional spacing.
5. Page formatting restrictions do not apply to drawings, but each page does apply to the page count. Pages submitted in excess of the page count will not be evaluated. *Page count does *not* apply to submission of Past Performance Questionnaires or to Title Page.

B. STEP ONE PROPOSAL FORMAT AND EVALUATION:

1. Format: The technical proposal, including title page shall be submitted in one (1) PDF document and shall not exceed a total of **THIRTY-FIVE (35)** pages. The Offeror *shall not* include any price or price related material in the Step One technical proposal. Use graphic presentations where such use will contribute to the compactness and clarity of the proposal.
2. Evaluation Factors – 1-3 Equal Importance for all:

Factor 1: *Qualifications (Technical)*

Submission Criteria: Offerors shall provide the following information:

- 1) A signed and dated Attestation of Compliance executed by an individual authorized to legally bind the company in federal contracts stating that the Offeror has reviewed in

full Specification Section 14 21 10 Traction Elevator – Modernization Subpart 1.3 Qualifications and Specification Section 14 24 10 Hydraulic Elevator – Modernization, Subpart 1.3 Qualifications (**SEE ATTACHMENT 02_ALL CLINs – Specifications Nationwide Elevator Initiative**) and affirms that Offeror’s current workforce meets or exceeds all of the qualifications stated therein, and Offeror will provide all required certificates and licenses after award, but before performance. This attestation shall be on company letterhead, provide the signers name and title within the company, as well as the company name and UEI. This shall be a stand alone document entitled Attestation of Compliance with Qualifications.

- 2) Offeror shall provide any state issued elevator contractor certification or license which allows offeror to perform elevator repair, servicing, and replacement in that state. This license or certification shall be active and in the name of the offeror.
- 3) Certificate of Insurance validating the offeror meets requirements in FAR 52.228-5 and supplemental insurance requirements, including: workers’ compensation and employers’ liability. Contractors are required to comply with applicable Federal and State workers’ compensation and occupational diseases statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer’s liability section of the insurance policy, except when contract operations are so commingled with a Contractor’s commercial operations that it would not be practical to require this coverage. Employer’s liability coverage of at least \$100,000 is required, except in States with exclusive or monopolistic funds that do not permit workers’ compensation to be written by private carriers. The following minimum insurance amounts must be shown: General Liability \$500,000 per occurrence. Automobile liability \$200,000 per person; \$500,000 per occurrence and \$20,000 per property damage. The successful bidder must present to the Contracting Officer prior to award, evidence of general liability insurance without any exclusionary clauses for asbestos that would void the general liability coverage.
- 4) A signed letter from Surety company on surety company letterhead showing bonding capacity of both single and aggregate validating the offeror can obtain both performance and payment bonds in accordance with FAR 52.228-16
- 5) Provide current EMR, to be obtained from your company insurance carrier and on insurance carrier’s letterhead. If EMR is above 1.0, provide written explanation of the EMR by the insurance carrier, on the insurance carrier’s letterhead describing why the EMR is elevated and the anticipated date that the EMR may be reduced to 1.0 or below.

Evaluation Methodology: For Qualifications, the minimum requirements for an Acceptable rating MUST include all of the following:

- 1) Submit the required Attestation of Compliance with Qualifications. The document must affirm that the company has thoroughly reviewed Specification Section 14 21 10 Traction Elevator – Modernization Subpart 1.3 Qualifications and Specification Section 14 24 10 Hydraulic Elevator – Modernization, Subpart 1.3 Qualifications and affirms that Offeror’s current workforce meets or exceeds all of the qualifications stated therein, and Offeror will provide all required certificates and licenses after award, but before performance.

- 2) Submit proof of any State issued elevator contractor certification or license which allows offeror to perform elevator repair, servicing, and replacement in that state. Must be active, and in the name of the Offeror.
- 3) Submit the required Certificate of Insurance and proof of compliance with Supplemental Insurance requirements as stated in the Submission Criteria.
- 4) Submit the required evidence of bonding capacity as stated in the Submission Criteria.
- 5) Submit current EMR as stated in the Submission Criteria. Any EMR rating over 1.0 may be considered Unacceptable.

Failure to submit any of the requested information will result in a rating of Unacceptable.

Factor 2: *Project Experience (Technical)*

Submission Criteria: The Offeror shall demonstrate experience by providing three elevator modernization projects completed in the last five years similar in size and scope as a prime contractor or a subcontractor with primary specialty of elevator modernization. Size is defined as modernization of one elevator bank with a minimum of two elevators; Scope is defined as an elevator modernization project in an active healthcare facility that included the following complexity:

- a) Provide and install new geared/gearless machines, deflector sheaves, hoist ropes, rope compensation, governor rope, speed governor, type B safeties, overspeed protections, and car/counterweight buffers. Clean, inspect, and reuse counterweights, guide rails and brackets.
- b) Provide and install new pump motor and valve assembly, hydraulic system, new cylinder and plunger assembly, cylinder case cleaning and installation of PVC liner. Clean, inspect, and reuse guide rails and buffers. Provide new car and counterweight guides.
- c) Provide and install new stopping devices, workman's lights and outlets, cartop operating device, leveling device, and emergency stop switches. All new main and auxiliary operating panels, car position indicators, audio voice systems, auto-dialer and 2-way communications compliant with latest ASME A17.1 (latest addition) and new car guides.
- d) Provide and install new corridor operating devices, position indicators, and hoistway access switches. Refinish hoistway entrance frames, clean and reuse sills, supports, strut angles, fascia plates and toe guards at hoistway entrances. Provide new stainless steel hoistway doors. Inspect, clean and reuse car frame.
- e) Provide new car frame (unless determined re-usable), car platforms (unless determined re-usable), new car enclosures, and power door operators for passenger and service elevators in accordance with the Division 14 specifications.

MUST Include all of the following for each example project provided:

- a) Project Title and Description; Project location (physical address); Contract number and award amount in dollars.

- b) Name and contact information for project owner. This is VERY IMPORTANT as the Government may contact owners to confirm information.
- c) The performance period, including start and completion dates, both original and actual. If original and actual dates differ, please provide a brief explanation.
- d) Total cost of the project in dollars, both original and actual. If original and actual costs differ, please provide a brief explanation.
- e) Percentage and description of total labor self-performed by Offeror.
- f) Brief description of the scope of work for each sample project which demonstrates work as a Prime contractor or a subcontractor with primary specialty of elevator modernization involving elevator modernization work that was technically similar to the scope provided for this project. This is VERY IMPORTANT to establish that the projects demonstrate performance on projects of similar complexity. Provide the number and type of elevators modernized for each project.

Evaluation Methodology: Project Experience will be evaluated based on the Offeror's ability to demonstrate three (3) elevator modernization projects completed in the last five years similar in size and scope.

A rating of Acceptable is achieved when the Offeror demonstrates three (3) elevator modernization projects completed in the last five years similar in size and scope as a prime contractor or a subcontractor with primary specialty of elevator modernization.

Failure to demonstrate three (3) elevator modernization projects completed in the last five years similar in size and scope as a prime contractor or a subcontractor with primary specialty of elevator modernization is considered unacceptable.

Failure to provide any of the requested information may result in an Unacceptable rating for this factor.

NOTE: The same projects evaluated for experience under this factor shall also be evaluated for Past Performance (Factor 3).

Factor 3: *Past Performance*

Submission Criteria: Past performance will be evaluated on contracts with Government agencies and private industry in terms of cost control, quality of work, and compliance with performance schedules. Only submit Past Performance information for the three projects submitted under **Factor 2, Project Experience**.

Offerors shall submit three (3) past performance evaluations. One for each of the projects provided in Factor 2 Project Experience. If a completed past performance evaluation is available in Contractor Performance Assessment Reporting System (CPARS), it shall be submitted with the proposal. For any project that does NOT have CPARS data available, a completed and signed Past Performance Questionnaire (PPQ) is required to be submitted with the proposal. **(See Attachment 07_All CLINs - Past performance Questionnaire)** The PPQ shall be rated

and signed by the evaluator. For any project that requires a PPQ submission, the Offeror shall notify the client for that project that the PPQ shall be completed and returned to the Offeror and incorporated into their proposal submission. In the event that an Offeror does not receive a complete PPQ from an evaluator prior to the time for submission, the Offeror shall submit the partially completed PPQ with Section 1 and the Evaluator Information in Section 2 completed, as well as documentation of the attempts made to have the PPQ signed. Ensure a valid POC with contact information is listed with the project title/contract number. The VA may make reasonable attempts to contact the client to obtain the PPQ information. Offerors should follow-up with clients to help ensure timely submittals of PPQs. For projects where the Offeror is a subcontractor with primary specialty of elevator modernization, CPARS will not show the subcontractor performance. Please contact the Prime Contractor and request that they complete the PPQ pertaining to Offerors performance on each contract, and request the CPARS and/or PPQ information for the contract.

For offerors that are joint ventures, the evaluation will take into account past performance of each party to the joint venture and the joint venture itself, if applicable.

The Government may consider additional performance related information regarding the Offeror. Past performance evaluations may also be conducted using information obtained from CPARS and any other sources deemed appropriate by the CO. Other sources may include, but are not limited to, inquiries of owner representative(s), Past Performance Questionnaires (PPQs), Contractor Performance Assessment Reporting System (CPARS), Electronic Subcontract Reporting System (eSRS), and any other known sources not provided by the Offeror. The Government reserves the right to contact any POC listed on a CPARS report or PPQ.

Failure to provide requested data, accessible points of contact, or valid phone numbers may result in an Offeror being considered unacceptable.

For PPQs, utilize the **Attachment 07_All CLINs - Past performance Questionnaire**. Completed PPQs should be incorporated into the proposal directly. CPARS and PPQ's will not count against the page limitation.

Evaluation Methodology: A rating of Acceptable is achieved when the Offeror submits CPARS or PPQs for each of the three recent and relevant projects from Factor 2, and those reports demonstrate satisfactory performance or better for quality, cost, management and schedule. Failure to provide any of the requested information will result in a rating of Unacceptable.

2.11 BID SUBMISSION (STEP TWO)

A. GENERAL:

1. There are 101 Contract Line Items/Item Numbers in this solicitation. **CLINS 0001–0013 are set -aside for SDVOSB concerns.** Any bids received from other than certified SDVOSBs for Item Number 0001–0013 will be deemed non-responsive. Bids will be considered from all SDVOSB bidders that submitted an acceptable technical proposal in Step One.

2. **CLINs 0014-0101 are unrestricted.** Bids will be considered from all bidders, both large and small that submitted an acceptable technical proposal in Step One.
 3. A bid opening will be conducted for each CLIN grouping. Bid submissions for each Bid/CLIN grouping will be due on the date and at the time stated for each groupings bid opening. This Bid schedule will be provided only to those Offerors that submitted an acceptable technical proposal in Step One. Bid opening will take place in person at a location to be determined. Only those offerors that submit acceptable technical proposals in Step One will be permitted to bid. Invitation to bid (Step Two) and bid opening information will be provided via amendment emailed to each Offeror that submitted an acceptable technical proposal in Step One. Bidders must have a representative present at the bid opening location on the date and time specified in the invitation to bid (Step Two) amendment.
 4. Only hard copy bids submitted in person will be accepted. Bids submitted by any other method are not permitted and will be deemed non-responsive and therefore ineligible for award.
 5. Standard Form (SF)1449 and Continuation of SF 1449 Blocks (**See Section B, pages 5 and 6 of the Solicitation**) with acknowledgement of amendments must be submitted with each Bid Grouping. See Section B. BID PACKAGE CONTENTS FOR FIRST LINE ITEM BID GROUPING below for more details.
 6. Offeror must use the Price Schedule contained in this solicitation for bid submittal. Bids must be firm fixed price and submitted in whole dollar values. The Offeror must only submit pricing for Item Number/CLIN being bid on. Bidders can choose to bid on one CLIN, multiple CLINs, or all CLINs for which they are eligible. Bid opening for CLINs 0001-0013 will be conducted in groups of two. For example CLINs 0001 and 0002, then 0003 and 0004, then 0005 and 0006, etc. CLINs 0011-0013 will be grouped together. Offerors must not submit pricing for Item Number/CLINs not in that bid grouping. Bids not submitted on the Price Schedule will not be recognized and will be deemed non-responsive and therefore ineligible for award. Bids should contain one price per CLIN being bid on. The Offeror must consider the effect of FAR 52.229-3 Federal, State and Local Taxes (DEVIATION) on their bid price. The clause provides guidance on taxes being applied to pricing. **Bid additives, deducts or alternates will not be accepted. Any exceptions to solicitation language may render a bid as non-responsive.**
 7. Limitations on Subcontracting certificate (SDVOSB set-aside) or subcontracting plan (large business) must be submitted as described in Section B. Bid Package Contents for First Line Item Bid Grouping and Section C Bid Package Contents for All Subsequent Line Item Bid Groupings.
 8. Representations & Certifications, Information Regarding Responsibility Matters, Certification Regarding Tax Matters, Violation of Arms Control Treaties or Agreements – Certification and Tax on Certain Foreign Procurements – Notice and Representation only need to be submitted on the first line item grouping you are bidding on. These documents will be used for the remainder of the line items you bid for.
- B. BID PACKAGE CONTENTS FOR FIRST LINE ITEM BID GROUPING.
 BIDDERS FIRST BID MUST INCLUDE::
1. **Standard Form (SF) 1449 Solicitation/Contract/Order for Commercial Products and Commercial Services:**

The Offeror must complete blocks 12, 17, 23, 24, and 30. Include your company's Unique Entity Identifier number associated with SAM.gov in Block 17a.

2. **Acknowledgement of All Amendments:**

The Offeror must acknowledge all amendments by 1. Completing the table on Pages 5-6 of the solicitation; or 2. Returning the signed amendment form(s) with the submission.

3. **Price Schedule:**

The Offeror must use the Price Schedule contained in this solicitation for all CLINs the bidder elects to submit a bid for. Offers must be firm fixed price and submitted in whole dollar values. The Offeror must only submit pricing for the Item Number/CLIN that is being bid on. Offerors must not submit pricing for Item Number/CLINs not in that bid grouping. Bidders not submitting the Price Schedule will be deemed non-responsive and therefore ineligible for award. Bids should contain one price per CLIN being bid on.

4. **Representations & Certifications:**

By submitting its offer, the Offeror verifies that as of the date of its offer, its representations and certifications that posted electronically in SAM for the provisions listed in SAM.gov are current, accurate, and complete. The Offeror's representations and certifications are hereby incorporated by reference into its offer.

5. **Information Regarding Responsibility Matters:**

Offeror must provide their response to FAR 52.209-7(b) Information Regarding Responsibility Matters.

6. **Certification Regarding Tax Matters:**

Offeror must provide their response to FAR 52.209-12(b) Certification Regarding Tax Matters.

7. **Violation of Arms Control Treaties or Agreements – Certification:**

Offeror must provide their response to FAR 52.209-13(b)(1) or (2) Violation of Arms Control Treaties of Agreements – Certification.

8. **Tax On Certain Foreign Procurements – Notice and Representation:**

Offeror must provide their response to FAR 52.229-11(d) Tax on Certain Foreign Procurements – Notice and Representation.

9. **Limitations on Subcontracting (This Only Applies to SDVOSB Set-asides: Line Items 0001-0013):**

The Offeror must complete and sign the certification in VAAR 852.219-75 VA Notice of Limitations on Subcontracting - Certificate of Compliance for Services and Construction and return it with offerors first bid grouping submission. The completed and signed certification will become part of the official award documentation. A copy of the clause to be completed and included with the bid is attached as a separate document. **(See ATTACHMENT 08_CLINs 0001-0013 ONLY – VAAR 852.219-75 Limitations on Subcontracting).**

Complete the certification and ensure that the appropriate box is checked. VAAR 852.219-75 imposes an obligation on the person executing the certification to enter the following information below the paragraph which begins with the word 'Certification:'

- a. **Offeror's Name:** The name should match the actual legal name of the offeror as captured in SAM.gov. If the offeror's name is 'SDVOSB Craftsman, LLC,' the full legal name of the entity must be entered in

each separate section of the certification that contains the following brackets: [Insert Name of Offeror]. It is not sufficient for the offeror's company name to be inserted at the bottom of the certification only. The offeror's name must be entered in the brackets referenced above.

- b. **Printed Name and Title of Signee:** Enter the printed name and job title of the signee.
- c. **Signature:** The certification statement must be signed by an individual who is authorized to execute the certification on behalf of the offeror.
- d. **Date:** The certification must be properly dated.
- e. **Company Name and Address:** The certification must include the signee's complete business name and address.

Failure to return the entire clause, with the appropriate box marked, the offeror's name entered, and the certification completed and signed, with the offeror's bid will result in the offer being deemed nonresponsive and therefore ineligible for award.

10. Subcontracting Plan (This Applies to Large Businesses Bidding on Line Items 0014-0101)

All Large Business Concerns (those defined as large under NAICS Code 238290) that bid on **Line Items 0014-0101**, and are the apparent awardee, **must**, submit their Small Business Subcontracting Plan, within 7 calendar days after request by the Contracting Officer. Failure to submit the small business subcontracting plan in accordance with FAR 52.219-9 and VAAR 852.219-70 will render that bidder ineligible for award and the Government may award to the next lowest bidder. For more information **See Section 2.21 below**.

11. Notice to SDVOSB Joint Venture/Mentor Protégé:

Any Offeror submitting a bid as a joint venture must provide a copy of the joint venture agreement, as well as certification from the certified SDVOSB joint partner, signed by an authorized official of each partner to the joint venture, stating that the parties to the joint venture (1) have entered into a joint venture agreement that fully complies with paragraph (c) of 13 CFR § 128.402; and (2) will perform the contract in compliance with the joint venture agreement. Provide the UEI for each partner in the agreement. Failure to submit the agreement and certification with the Offeror's bid may result in the bid being deemed non-responsive and therefore ineligible for award.

C. BID PACKAGE CONTENTS ALL SUBSEQUENT LINE ITEM BID GROUPINGS:

- 1. **Standard Form (SF) 1449 Solicitation/Contract/Order for Commercial Products and Commercial Services:**
The Offeror must complete blocks 12, 17, 23, 24, and 30. Include your company's Unique Entity Identifier number associated with SAM.gov in Block 17a.
- 2. **Acknowledgement of All Amendments:**
The Offeror must acknowledge all amendments by 1. Completing the table on Pages 5-6 of the solicitation; or 2. Returning the signed amendment form(s) with the submission.
- 3. **Price Schedule:**
The Offeror must use the Price Schedule contained in this solicitation for all CLINs the bidder elects to submit a bid for. Offers must be firm fixed price and submitted in whole

dollar values. The Offeror must only submit pricing for the Item Number/CLIN that is being bid on. Offerors must not submit pricing for Item Number/CLINs not in that bid grouping. Bidders not submitting the Price Schedule will be deemed non-responsive and therefore ineligible for award. Bids should contain one price per CLIN being bid on..

4. Notice to SDVOSB Joint Venture/Mentor Protégé:

Any Offeror submitting a bid as a joint venture must provide a copy of the joint venture agreement, as well as certification from the certified SDVOSB joint partner, signed by an authorized official of each partner to the joint venture, stating that the parties to the joint venture (1) have entered into a joint venture agreement that fully complies with paragraph (c) of 13 CFR § 128.402; and (2) will perform the contract in compliance with the joint venture agreement. Provide the UEI for each partner in the agreement. Failure to submit the agreement and certification with the Offeror's bid may result in the bid being deemed non-responsive and therefore ineligible for award.

D. BID OPENING:

1. Bid opening for **Line Items 0001-0013 (SDVOSB Set-Aside)** will occur in groups of twos (2) with the final grouping being a group of three (3). Bid openings for CLINs 0001-0013 will all occur on the same day.
2. Bid opening for **Line Items 0014-0101 (Unrestricted)** will occur in groups of 5. Due to the large number of Line Items, this Bid Opening will occur over the course of several days.
3. A schedule of the public bid opening will be provided with location, dates and times when the project moves to Step two. Bid submissions for each Bid/CLIN grouping will be due on the date and at the time stated for each groupings bid opening. This Bid schedule will be provided only to those Offerors that submitted an acceptable technical proposal in Step One.
4. Bid Opening will take place in person at a location to be determined. Only those offerors that submit acceptable technical proposals will be permitted to bid. Bidders must have an in-person representative present at the bid opening location on the date and time to be released to Offerors that submit acceptable technical proposals.
5. Only hard copy bids delivered in person will be accepted. Bids submitted by any other method are not permitted and will be deemed non-responsive and therefore ineligible for award.
6. Bids will be publicly read aloud on the bid opening dates at the specified times.
7. The bid abstract will be made available by request after the bid opening has been conducted. To receive a copy of the bid abstract, send the request to leslie.prather@va.gov within 30 calendar days after the bid opening.

2.12 DETERMINATION OF NONRESPONSIVENESS

Bids received in response to this solicitation will be reviewed for responsiveness. Failure to provide documentation as outlined in the solicitation by the bid due date and time may result in the offer being deemed non-responsive and therefore ineligible for award

Failure to provide documentation as outlined in the **Technical Proposal Requirements (Step One)** section of the solicitation by the date and time set for technical proposals due date may result in the offer being deemed Unacceptable and therefore ineligible for award.

Failure to provide documentation as outlined in the **Bid Submission (Step Two)** section of the solicitation by the bid due date and time may result in the offer being deemed nonresponsive and therefore ineligible for award.

2.13 RESPONSIBILITY DETERMINATION

In accordance with FAR subpart 9.1, *Responsible Prospective Contractors*, a responsibility determination will be made for the all apparent awardees prior to processing the awards. The Contracting Officer reserves the right to obtain information to assist the Government in determining the apparent successful offerors responsible, including information regarding the offeror's previous experience (including points of contact), organization (including company officers), technical qualifications, financial resources, and other information deemed necessary. The Government may request additional information solely for the purpose of making a responsibility determination from all offerors after receipt of bids. These requests for information do not constitute negotiations. Any information received by the Government that would be cause for a determination of nonresponsibility may deem the offeror ineligible for award.

2.14 BASIS OF AWARD

Award may only be made to responsible bidders whose bids, conforming to the solicitation, will be most advantageous to the Government, considering only price and price-related factors specified elsewhere in the solicitation (see FAR 52.214-10). The low price will be evaluated by the Contracting Officer prior to award to confirm it is fair and reasonable.

2.15 VETS 4212

Title 38 U.S.C. 4212(d), codified at 41 CFR 61-300, requires that federal contractors report, at least annually, the number and category of veterans who are within their workforce. Submission of the VETS-4212 reporting information can be done electronically at <https://www.dol.gov/agencies/vets/programs/vets4212>. Award cannot be made unless the awardee has filed their VETS-4212 report. Therefore, all offerors are encouraged to file every year. The Contracting Officer may request a copy of the confirmation email prior to awarding the contract.

2.16 SYSTEM FOR AWARD MANAGEMENT

The FAR requires that federal contractors register in the System for Award Management (SAM) at <https://sam.gov/> and enter all mandatory information into the system. In compliance with FAR 52.204-7, an offeror must have an active registration in SAM at the time an offer is submitted

and at the time of award. The Offeror shall be registered at time of Step One submission, Step Two submission, and award. The initial screening of technical proposals includes reviewing SAM.gov for compliance with this section.

2.17 DEVIATION NOTICE (FEB 2025)

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.222-25, *Affirmative Action Compliance*, 52.223-22, *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation*, and paragraphs (d) and (t) of 52.212-3, *Offeror Representations and Certifications—Commercial Products and Commercial Services*. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

2.18 REVIEW REQUIRED REGISTRATION WITH CONTRACTOR PERFORMANCE ASSESSMENT SYSTEM (CPARS)

(a) As prescribed in FAR 42.1102(b), the Department of Veterans Affairs (VA) evaluates contractor past performance on all contracts that exceed the simplified acquisition threshold and shares those evaluations with other Federal Government contract specialists and procurement officials. The FAR requires that the contractor be provided an opportunity to comment on past performance evaluations prior to each report closing. To fulfill this requirement, VA uses an online database, Contractor Performance Assessment Reporting System (CPARS), which is maintained by the Naval Sea Logistics Center in Portsmouth, New Hampshire. CPARS is available to all Federal agencies and is the system used to collect and retrieve performance assessment reports used in source selection determinations. CPARS also includes access to the federal awardee performance and integrity information system (FAPIIS). FAPIIS is a web-enabled application accessed via CPARS for contractor responsibility determination information.

(b) Each contractor whose contract award is estimated to exceed \$350,000 is required to register with CPARS at <http://www.cpars.gov/>. Help in registering can be obtained by contacting the Customer Service Desk at cpars-helpdesk@us.navy.mil. Registration should occur no later than 30 days after contract award and must be kept current should there be any change to the contractor's registered representative.

(c) For contracts with a period of one year or less, the Contracting Officer will perform a single evaluation when the contract is complete. For contracts exceeding one year, the Contracting Officer will evaluate the contractor's performance annually. Interim reports will be filed each year until the last year of the contract, when the final report will be completed. The report will be assigned in CPARS to the contractor's designated representative for comment. The contractor representative will have 30 days to submit any comments and re-assign the report to the VA Contracting Officer.

(d) Failure to have a current registration in CPARS or to re-assign the report to the VA Contracting Officer within those 30 days will result in the Government's evaluation being placed on file in the database with a statement that the contractor failed to respond.

2.19 BACKGROUND INVESTIGATIONS AND SPECIAL AGREEMENT CHECKS

All contractor employees are subject to the same level of investigation as VA employees who have access to VA sensitive information. The level of background investigation is commensurate with the level of access needed to perform all work as identified in the solicitation documents. This requirement is applicable to all subcontractor personnel requiring the same access. As per VA Directive 0710, costs of background investigations will be borne by the contractor. The awardee will need to coordinate with the VA Medical Center concerning badging requirements. If the site requires an investigation, the contractor must follow VA Directive 0710.

2.20 REFERENCES TO VA ENGINEER, RESIDENT ENGINEER OR PROJECT MANAGER

Any reference contained within the solicitation/contract specifications and/or technical data package to the "VA Engineer," "Resident Engineer," or "Project Manager," or their abbreviations must be replaced with "Contracting Officer's Representative (COR)."

2.21 SUBCONTRACTING PLAN (APPLICABLE TO LARGE BUSINESS CONCERNS BIDDING ON CLINS 0014-0101)

(a) *Small Business Subcontracting Plan.* Each large business offeror shall provide a Small Business Subcontracting Plan that contains all of the elements required by FAR 52.219-9 and VAAR 852.219-70. If the large business does not have an approved Master Plan or approved Commercial Plan, then an Individual Subcontracting Plan must be submitted that includes an assurance that small businesses will be given the maximum practicable opportunity to participate in contract performance. The Subcontracting Plan is a requirement for award to a large business, and the Plan, as negotiated, will be incorporated into any resultant contract. Following bid opening, but prior to award, the apparent successful bidder (if a large business) shall submit and negotiate a subcontracting plan. Plans are NOT to be submitted with bids.

(b) The subcontracting plan must address all requirements defined in FAR 52.219-9 and VAAR 852.219-70, *Subcontracting plan requirements*, including proposed subcontracting to SDVOSBs or VOSBs. The 2024 VA subcontracting goals listed below are based upon total procurement dollars expended and are the suggested minimum goals for VA administered subcontracting plans.

SB 10.33%

VOSB 7.0%

36C77626B0007

SDVOSB 5.0%

SDB 5.0%

WOSB 5.0%

HUBzone 3.0%

2.22 **SPECIAL INFORMATION REGARDING CLAUSES AND PROVISIONS**

The following Clauses, which are listed in the solicitation, and the resulting contracts only apply to SDVOSBs when bidding on CLINs 0001-0013:

VAAR 852.219-73 VA Notice of Total Set-Aside for Certified SDVOSBs

VAAR 852.219.75 VA Notice of Limitations on Subcontracting – Certificate of Compliance for Services and Construction

The following Clauses, which are listed in the solicitation and the resulting contracts only apply to Large Businesses bidding on CLINs 0014-0101:

FAR 52.219-9 ALT I Small Business Subcontracting Plan

VAAR 852.219-70 VA Small Business Subcontracting Plan Minimum Requirements

The following Clause which is listed in the solicitation and the resulting contracts only applies to contracts with a value that exceeds \$7.5 million and the period of performance is 120 days or more:

FAR 52.203-13 Contractor Code of Business Ethics and Conduct

REPRESENTATIONS AND CERTIFICATIONS

3.1 52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (NOV 2015)(DEVIATION NOV 2025)

(a) *Definitions.* As used in this clause—

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned—

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) *Representation.* The Offeror represents that-

- (1) It ☐ is, ☐ is not an inverted domestic corporation; and
- (2) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(End of Provision)

3.2 52.209-5 CERTIFICATION REGARDING RESPONSIBILITY MATTERS (AUG 2020)(DEVIATION NOV 2025)

(a)(1) The Offeror certifies, to the best of its knowledge and belief, that—

(i) The Offeror and/or any of its Principals—

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract;

violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(1) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(2) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has ☐ has not ☐, within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a

determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of Provision)

3.3 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)(DEVIATION NOV 2025)

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of Provision)

3.4 52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016)(DEVIATION NOV 2025)

(a) The Government will not enter into a contract with any corporation that—

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a

timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that—

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of Provision)

3.5 52.209-12 CERTIFICATION REGARDING TAX MATTERS (OCT 2025)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed \$7 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it—

(1) Has ☐ filed all Federal tax returns required during the three years preceding the certification;

(2) Has not ☐ been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not ☐, more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of Provision)

3.6 52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (NOV 2021) (DEVIATION NOV 2025)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification.* [Offeror shall check either (1) or (2).]

___ (1) The Offeror certifies that—

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

___ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament

agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless—

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under [22 U.S.C. 2593e](#)(d) or (e); or

(ii) Determined under [22 U.S.C. 2593e](#)(g)(2) that the entity has ceased all activities for which measures were imposed under [22 U.S.C. 2593e](#)(b).

(e) *Remedies*. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of Provision)

3.7 52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION (JUN 2020) (DEVIATION SEP 2025)

(a) *Definitions*. As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in [26 U.S.C. 7701\(a\)\(30\)](#) means—

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of [26 U.S.C. 701\(a\)\(31\)](#)); and
- (5) Any trust if—

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See [26 U.S.C. 5000C](#) and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the [26 U.S.C. 5000C](#) tax are adjudicated by the IRS as the [26 U.S.C. 5000C](#) tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under [26 U.S.C. 5000C](#), the Offeror represents that—

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [*Offeror must select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of Provision)

3.8 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)

(a) *North American Industry Classification System (NAICS) code and small business size standard.* The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

- (1) Is set aside for small business and has a value above the simplified acquisition threshold;
- (2) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (3) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the SF 1449, letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show—

- (1) The solicitation number;
- (2) The time specified in the solicitation for receipt of offers;
- (3) The name, address, and telephone number of the offeror;
- (4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;

(5) Terms of any express warranty;

(6) Price and any discount terms;

(7) "Remit to" address, if different than mailing address;

(8) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) 52.212-3 (see FAR 52.212-3(b) for those representations and certifications that the offeror shall complete electronically);

(9) Acknowledgment of Solicitation Amendments;

(10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(11) If the offer is not submitted on the SF 1449, include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) *Period for acceptance of offers.* The offeror agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) *Product samples.* When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) *Multiple offers.* Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR subpart 4.10), or alternative commercial products or commercial services for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2)(i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and—

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) *Multiple awards*. The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) Availability of requirements documents cited in the solicitation.

(1)(i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29, and copies of specifications, standards, and product descriptions can be downloaded from the ASSIST website at <https://assist.dla.mil>.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the address in paragraph (i)(1)(i) of this provision.

(2) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at <https://assist.dla.mil>.

(3) Defense documents not available from the ASSIST website may be requested from the Defense Standardization Program Office by-

(i) Using the ASSIST feedback module (<https://assist.dla.mil/feedback>); or

(ii) Contacting the Defense Standardization Program Office by telephone at 571-767-6688 or email at assisthelp@dlamail.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) *Unique entity identifier.* (Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR subpart 32.11) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) [Reserved]

(l) *Debriefing.* If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of Provision)

3.9 52.212-2 EVALUATION-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021) (DEVIATION OCT 2025)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

All factors in the Step One technical proposal are equally important and a rating of Acceptable must be achieved for Factor 1 Qualifications (Technical), Factor 2 Project Experience (Technical), and Factor 3 Past Performance (Technical) in order for the Offeror to receive an Acceptable rating.

Price will be the only factor used to determine which bidders who submitted an acceptable technical proposal in Step One are the lowest priced bid.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

3.10 52.216-1 TYPE OF CONTRACT (NOV 2025) (DEVIATION)

The Government contemplates award of a Firm-Fixed-Price contract resulting from this solicitation.

(End of Provision)

3.11 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2025) (DEVIATION NOV 2025)

(a) *Definitions.* As used in this provision—

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in [13 CFR 126.200](#), is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) ([13 CFR 126.103](#)).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the

concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 238290..

(2) The small business size standard is \$22 Million.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*

(1) The offeror represents as part of its offer that—

(i) it ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not a women-owned small disadvantage business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(5) *SDVOSB joint venture eligible under the SDVOSB Program.* [*Complete only if the offeror is certified as a SDVOSB concern.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements

of 13 CFR 128.402. [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:___.*]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that it ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: ___.*] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice.* Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be—

- (1) Punished by imposition of fine, imprisonment, or both;
- (2) Subject to administrative remedies, including suspension and debarment; and
- (3) Ineligible for participation in programs conducted under the authority of the Act.

(End of Provision)

3.12 52.219-2 EQUAL LOW BIDS (NOV 2025) (DEVIATION)

(a) This provision applies to small business concerns only.

(b) The bidder's status as a labor surplus area (LSA) concern may affect entitlement to award in case of tie bids. If the bidder wishes to be considered for this priority, the bidder must identify, in the following space, the LSA in which the costs to be incurred on account of manufacturing or production (by the bidder or the first-tier subcontractors) amount to more than 50 percent of the contract price.

(c) Failure to identify the labor surplus areas as specified in paragraph (b) of this provision will preclude the bidder from receiving priority consideration. If the bidder is awarded a contract as a result of receiving priority consideration under this provision and would not have otherwise received award, the bidder shall perform the contract or cause the contract to be performed in accordance with the obligations of an LSA concern.

(End of Provision)

3.13 52.225-4 BUY AMERICAN—FREE TRADE AGREEMENTS—ISRAELI TRADE ACT CERTIFICATE (DEVIATION) (NOV 2025)

(a)(1) The Offeror certifies that each end product, except those listed in paragraph (b) or (c)(1) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(2) of this provision contains a critical component.

(2) The terms “Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product,” “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American-Free Trade Agreements-Israeli Trade Act.”

(b) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line item No.	Country of origin

(c)(1) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (b) of this provision) as defined in the clause of this solicitation entitled “Buy American-Free Trade Agreements-Israeli Trade Act.”

Other Foreign End Products:

Line item No.	Country of origin

(2) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105)

Line Item No. _____

(d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.

(End of Provision)

3.14 52.225-6 TRADE AGREEMENTS CERTIFICATE (FEB 2021)

(a) The offeror certifies that each end product, except those listed in paragraph (b) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(b) The offeror shall list as other end products those supplies that are not U.S.-made or designated country end products.

Other End Products

Line item No.	Country of origin

[List as necessary]

(c) The Government will evaluate offers in accordance with the policies and procedures of Part 25 of the Federal Acquisition Regulation. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for those products are insufficient to fulfill the requirements of this solicitation.

(End of Provision)

3.15 52.233-2 SERVICE OF PROTEST (DEVIATION NOV 2025)

- (a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.
- (b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

3.16 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures.*

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror’s possession but does not need to include an internal or third-party audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These

sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of Provision)

3.17 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the provision.

(b) The use in this solicitation of any VAAR Acquisition Regulation (48 CFR Chapter FEDERAL ACQUISITION REGULATION (48 CFR Chapter 1)) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of Provision)

3.18 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that

must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52#FAR_52_252_2

<https://www.va.gov/oal/library/vaar/index.asp>

(End of Provision)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION	JAN 2017
52.204-7	SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (DEVIATION)	NOV 2025
52.214-3	AMENDMENTS TO INVITATIONS FOR BIDS (DEVIATION NOV 2025)	DEC 2016
52.214-4	FALSE STATEMENTS IN BIDS	APR 1984
52.214-5	SUBMISSION OF BIDS (DEVIATION NOV 2025)	DEC 2016
52.214-6	EXPLANATION TO PROSPECTIVE BIDDERS	APR 1984
52.214-7	LATE SUBMISSIONS, MODIFICATIONS, AND WITHDRAWAL OF BIDS (DEVIATION NOV 2025)	NOV 1999
52.214-10	CONTRACT AWARD—SEALED BIDDING	JUL 1990
52.214-12	PREPARATION OF BIDS	APR 1984
52.214-15	PERIOD FOR ACCEPTANCE OF BIDS	APR 1984
52.214-16	MINIMUM BID ACCEPTANCE PERIOD	APR 1984
52.214-23	LATE SUBMISSIONS, MODIFICATIONS, REVISIONS AND WITHDRAWALS OF TECHNICAL PROPOSALS UNDER TWO-STEP SEALED BIDDING (DEVIATION NOV2025)	DEC 2016
52.214-34	SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE	APR 1991
52.214-35	SUBMISSION OF OFFERS IN U.S. CURRENCY	APR 1991
52.223-4	RECOVERED MATERIAL CERTIFICATION	MAY 2008

3.19 VAAR 852.209-70 ORGANIZATIONAL CONFLICTS OF INTEREST (OCT 2020)

(a) It is in the best interest of the Government to avoid situations which might create an organizational conflict of interest or where the Offeror's performance of work under the contract may provide the Contractor with an unfair competitive advantage. The term "organizational conflict of interest" means that because of other activities or relationships with other persons, a person is unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or the person has an unfair competitive advantage.

(b) The Offeror shall provide a statement with its offer which describes, in a concise manner, all relevant facts concerning any past, present, or currently planned interest (financial, contractual, organizational, or otherwise) or actual or potential organizational conflicts of interest relating to the services to be provided under this solicitation. The Offeror shall also provide statements with its offer containing the same information for any consultants and subcontractors identified in its proposal and which will provide services under the solicitation. The Offeror may also provide relevant facts that show how its organizational and/or management system or other actions would avoid or mitigate any actual or potential organizational conflicts of interest.

(c) Based on this information and any other information solicited or obtained by the Contracting Officer, the Contracting Officer may determine that an organizational conflict of interest exists which would warrant disqualifying the Contractor for award of the contract unless the organizational conflict of interest can be mitigated to the Contracting Officer's satisfaction by negotiating terms and conditions of the contract to that effect. If the conflict of interest cannot be mitigated and if the Contracting Officer finds that it is in the best interest of the United States to award the contract, the Contracting Officer shall request a waiver in accordance with FAR 9.503.

(d) Nondisclosure or misrepresentation of actual or potential organizational conflicts of interest at the time of the offer or arising as a result of a modification to the contract, may result in the termination of the contract at no expense to the Government.

(End of Provision)

3.20 VAAR 852.233-70 PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION (OCT 2018)

(a) Any protest filed by an interested party shall—

- (1) Include the name, address, fax number, email and telephone number of the protester;
- (2) Identify the solicitation and/or contract number;
- (3) Include an original signed by the protester or the protester's representative and at least one copy;
- (4) Set forth a detailed statement of the legal and factual grounds of the protest, including a description of resulting prejudice to the protester, and provide copies of relevant documents;

(5) Specifically request a ruling of the individual upon whom the protest is served;

(6) State the form of relief requested; and

(7) Provide all information establishing the timeliness of the protest.

(b) Failure to comply with the above may result in dismissal of the protest without further consideration.

(c) Bidders/offerors and Contracting Officers are encouraged to use alternative dispute resolution (ADR) procedures to resolve protests at any stage in the protest process. If ADR is used, the Department of Veterans Affairs will not furnish any documentation in an ADR proceeding beyond what is allowed by the Federal Acquisition Regulation.

(End of Provision)

PLEASE NOTE: The correct mailing information for filing alternate protests is as follows:

Deputy Assistant Secretary for Acquisition and Logistics,
Risk Management Team, Department of Veterans Affairs
810 Vermont Avenue, N.W.
Washington, DC 20420

Or for solicitations issued by the Office of Construction and Facilities Management:

Director, Office of Construction and Facilities Management
811 Vermont Avenue, N.W.
Washington, DC 20420

3.21 VAAR 852.239-75 INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE (FEB 2023)

(a) Any offeror responding to this solicitation must comply with established VA Information and Communication Technology (ICT) (formerly Electronic and Information (EIT)) accessibility standards. Information about Section 508 is available at <http://www.section508.va.gov/>.

(b) The Section 508 accessibility standards applicable to this solicitation are stated in the clause at 852.239–75, Information and Communication Technology Accessibility. In order to facilitate the Government’s determination whether proposed ICT supplies meet applicable Section 508 accessibility standards, offerors must submit appropriate VA Section 508 Checklists, in accordance with the checklist completion instructions. The purpose of the checklists is to assist VA acquisition and program officials in determining whether proposed ICT supplies, or information, documentation and services conform to applicable Section 508 accessibility standards. The checklists allow offerors or developers to self-evaluate their supplies and document—in detail—whether they conform to a specific Section 508 accessibility standard, and any underway remediation efforts addressing conformance issues.

(c) Respondents to this solicitation must identify any exception to Section 508 requirements. If an offeror claims its supplies or services meet applicable Section 508 accessibility standards,

and it is later determined by the Government, i.e., after award of a contract or order, that supplies or services delivered do not conform to the described accessibility standards, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its expense.

(End of Provision)

SECTION C - CONTRACT CLAUSES

C.1 52.212-4 TERMS AND CONDITIONS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023)(DEVIATION OCT 2025)

(a) *Definitions.* The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes.* This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or

negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

- (1) Notify the Contracting Officer in writing as soon as possible;
- (2) Remedy the delay as quickly as possible; and
- (3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice.* The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment—*

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act ([31 U.S.C. 3903](#)) and prompt payment regulations at 5 CFR part 1315.

(3) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by FAR part 33 if–

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on–

- (A) The date on which the designated office receives payment from the Contractor;
 - (B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or
 - (C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.
- (vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.
- (j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—
- (1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or
 - (2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.
- (k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.
- (l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.
- (m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title*. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty*. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability*. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts*. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence*. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services;
- (2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
- (3) Other contract clauses incorporated in the solicitation or contract;
- (4) Addenda to this solicitation or contract;
- (5) Solicitation provisions incorporated in the solicitation;
- (6) Other paragraphs of this clause;
- (7) Other documents, exhibits, and attachments; and
- (8) The specification.

(s) *Unauthorized obligations*.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record.* This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor’s directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference.* The Contractor’s representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

(End of Clause)

C.2 52.219-4 NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (NOV 2025) (DEVIATION)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

[] Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of Clause)

C.3 52.219-9 SMALL BUSINESS SUBCONTRACTING PLAN (NOV 2025) (DEVIATION) ALTERNATE I (NOV 2025)

(a) This clause does not apply to small business concerns.

(b) *Definitions.* As used in this clause—

Alaska Native Corporation (ANC) means any Regional Corporation, Village Corporation, Urban Corporation, or Group Corporation organized under the laws of the State of Alaska in accordance with the Alaska Native Claims Settlement Act (43 U.S.C. 1601, *et seq.*) and which is considered a minority and economically disadvantaged concern under the criteria at 43 U.S.C. 1626(e)(1). This definition also includes ANC direct and indirect subsidiary corporations, joint ventures, and partnerships that meet the requirements of 43 U.S.C. 1626(e)(2).

Commercial plan means a subcontracting plan (including goals) that covers the offeror's fiscal year and that applies to the entire production of commercial products and commercial services sold by either the entire company or a portion thereof (e.g., division, plant, or product line).

Commercial product means a product that satisfies the definition of “commercial product” in Federal Acquisition Regulation (FAR) 2.101.

Commercial service means a service that satisfies the definition of “commercial service” in FAR 2.101.

Indian tribe means any Indian tribe, band, group, pueblo, or community, including native villages and native groups (including corporations organized by Kenai, Juneau, Sitka, and Kodiak) as defined in the Alaska Native Claims Settlement Act (43 U.S.C. 1601 et seq.), that is recognized by the Federal Government as eligible for services from the Bureau of Indian Affairs in accordance with 25 U.S.C. 1452(c). This definition also includes Indian-owned economic enterprises that meet the requirements of 25 U.S.C. 1452(e).

Individual subcontracting plan means a subcontracting plan that covers the entire contract period (including option periods), applies to a specific contract, and has goals that are based on the offeror's planned subcontracting in support of the specific contract, except that indirect costs incurred for common or joint purposes may be allocated on a prorated basis to the contract.

Master subcontracting plan means a subcontracting plan that contains all the required elements of an individual subcontracting plan, except goals, and may be incorporated into individual subcontracting plans, provided the master subcontracting plan has been approved.

Reduced payment means a payment for less than the amount agreed upon in a subcontract in accordance with its terms and conditions, for supplies and services for which the Government has paid the prime contractor.

Subcontract means any agreement (other than one involving an employer-employee relationship) entered into by a Federal Government prime contractor or subcontractor calling for supplies or services required for performance of the contract or subcontract.

Subcontracting Plan Reporting (SPR) means the electronic subcontracting reporting system at SAM.gov for small business subcontracting program reporting.

Total contract dollars means the final anticipated dollar value, including the dollar value of all options.

Untimely payment means a payment to a subcontractor that is more than 90 days past due under the terms and conditions of a subcontract for supplies and services for which the Government has paid the prime contractor.

(c)(1) The apparently low bidder, upon request by the Contracting Officer, shall submit a subcontracting plan, where applicable, that separately addresses subcontracting with small business, veteran-owned small business (VOSB), service-disabled veteran-owned small business (SDVOSB), HUBZone small business, small disadvantaged business (SDB), and women-owned small business (WOSB) concerns. If the bidder is submitting an individual subcontracting plan, the plan must separately address subcontracting with small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns, with a separate part for the basic contract and separate parts for each option (if any). The Contracting Officer shall include the plan in and make it a part of the resultant contract. The apparently low bidder shall submit the subcontracting plan within the timeframe specified by the Contracting Officer. If the Bidder fails to submit the subcontracting plan, then the Bidder shall not be eligible for the award of a contract.

(2)(i) Unless the Contractor has reason to question the representations, it may accept a subcontractor's written representations of its size and socioeconomic status as a small business or SDB, if the subcontractor represents that the size and socioeconomic status representations with its offer are current, accurate, and complete as of the date of the offer for the subcontract.

(ii) Unless the Contractor has reason to question the representations, it may accept a subcontractor's representations of its size and socioeconomic status as a small business or SDB in the System for Award Management (SAM) if—

(A) The subcontractor is registered in SAM; and

(B) The subcontractor represents that the size and socioeconomic status representations made in SAM are current, accurate and complete as of the date of the offer for the subcontract.

(iii) The Contractor may not require that the subcontractor register in SAM for the purposes of representing size or socioeconomic status in connection with a subcontract.

(iv) A contractor acting in good faith is not liable for misrepresentations made by its subcontractors regarding the subcontractor's size or SDB status.

(v) In order to be eligible as a VOSB, SDVOSB, HUBZone small business, or WOSB concern, subcontractor under a subcontracting plan, the small business must be certified by the Small Business Administration (SBA) as that socioeconomic status. SBA certifications are in the Small Business Search (SBS) website at <https://search.certifications.sba.gov/>.

(d) The Offeror's subcontracting plan shall include the following:

(1) Separate goals, expressed in terms of total dollars subcontracted, and as a percentage of total planned subcontracting dollars, for the use of small business, VOSB, SDVOSB, HUBZone small business, SDB, and WOSB concerns as subcontractors. For individual subcontracting plans, and if required by the Contracting Officer, goals shall also be expressed in terms of percentage of total contract dollars, in addition to the goals expressed as a percentage of total subcontract dollars. The Offeror shall include all subcontracts that contribute to contract performance and may include a proportionate share of products and services that are normally allocated as indirect costs. In accordance with 15 U.S.C. 657r(a), an Offeror that is a mentor with an SBA-approved mentor-protégé agreement (see 13 CFR 125.9) and awards a subcontract to its protégé may apply the costs incurred for training it provides to its protégé toward its subcontracting plan goals, if the protégé is a covered territory business or the protégé's principal office is located in the Commonwealth of Puerto Rico. In accordance with 43 U.S.C. 1626—

(i) Count subcontracts awarded to an ANC or Indian tribe toward the subcontracting goals for small business and small disadvantaged business concerns, regardless of the size or SBA certification status of the ANC or Indian tribe; and

(ii) If one or more subcontractors are in the subcontract tier between the prime Contractor and the ANC or Indian tribe, then the ANC or Indian tribe shall designate the appropriate Contractor(s) to count the subcontract towards its small business and small disadvantaged business subcontracting goals.

(A) In most cases, the appropriate Contractor is the Contractor that awarded the subcontract to the ANC or Indian tribe.

(B) If the ANC or Indian tribe designates more than one Contractor to count the subcontract toward its goals, the ANC or Indian tribe shall designate only a portion of the total subcontract award to each Contractor. The sum of the amounts designated to various Contractors cannot exceed the total value of the subcontract.

(C) The ANC or Indian tribe shall give a copy of the written designation to the Contracting Officer, the prime Contractor, and the subcontractors between the prime Contractor and the ANC or Indian tribe within 30 days of the date of the subcontract award.

(D) If the Contracting Officer does not receive a copy of the ANC's or the Indian tribe's written designation within 30 days of the subcontract award, the Contracting Officer will consider the Contractor that awarded the subcontract to the ANC or Indian tribe the designated Contractor.

(2) A statement of–

(i) Total dollars planned to be subcontracted for an individual subcontracting plan; or the Offeror's total projected sales, expressed in dollars, and the total value of projected subcontracts, including all indirect costs except as described in paragraph (g) of this clause, to support the sales for a commercial plan;

(ii) Total dollars planned to be subcontracted to small business concerns (including ANC and Indian tribes);

(iii) Total dollars planned to be subcontracted to veteran-owned small business concerns;

(iv) Total dollars planned to be subcontracted to service-disabled veteran-owned small business;

(v) Total dollars planned to be subcontracted to HUBZone small business concerns;

(vi) Total dollars planned to be subcontracted to small disadvantaged business concerns (including ANCs and Indian tribes); and

(vii) Total dollars planned to be subcontracted to women-owned small business concerns.

(3) A description of the principal types of supplies and services to be subcontracted, and an identification of the types planned for subcontracting to–

(i) Small business concerns;

(ii) Veteran-owned small business concerns;

(iii) Service-disabled veteran-owned small business concerns;

(iv) HUBZone small business concerns;

(v) Small disadvantaged business concerns; and

(vi) Women-owned small business concerns.

(4) A description of the method used to develop the subcontracting goals in paragraph (d)(1) of this clause.

(5) A description of the method used to identify potential sources for solicitation purposes (e.g., existing company source lists, SAM, veterans service organizations, the National Minority Purchasing Council Vendor Information Service, the Research and Information Division of the Minority Business Development Agency in the Department of Commerce, or small, HUBZone, small disadvantaged, and women-owned small business trade associations). A firm may rely on the information contained in SAM as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining a small, veteran-owned small, service-disabled veteran-owned small, HUBZone small, small disadvantaged, and women-owned small business source list. Use of SAM as its source list does not relieve a firm of its responsibilities (e.g., outreach, assistance, counseling, or publicizing subcontracting opportunities) in this clause.

(6) A statement as to whether or not the Offeror included indirect costs in establishing subcontracting goals, and a description of the method used to determine the proportionate share of indirect costs to be incurred with—

(i) Small business concerns (including ANC and Indian tribes);

(ii) Veteran-owned small business concerns;

(iii) Service-disabled veteran-owned small business concerns;

(iv) HUBZone small business concerns;

(v) Small disadvantaged business concerns (including ANC and Indian tribes); and

(vi) Women-owned small business concerns.

(7) The name of the individual employed by the Offeror who will administer the Offeror's subcontracting program, and a description of the duties of the individual.

(8) A description of the efforts the Offeror will make to assure that small business, VOSB, SDVOSB, HUBZone small business, SDB, and WOSB concerns have an equitable opportunity to compete for subcontracts.

(9) Assurances that the Offeror will include the clause of this contract entitled "Utilization of Small Business Concerns" in all subcontracts that offer further subcontracting opportunities, and that the Offeror will require all subcontractors (except small business concerns, including entities that are treated as small business concerns by statute for certain purposes (e.g., ANCs, see 13 CFR 125.3(b)(2))) that receive subcontracts in excess of the applicable threshold specified in FAR 19.109(a) on the date of subcontract award, with further subcontracting possibilities to adopt a subcontracting plan that complies with the requirements of this clause.

(10) Assurances that the Offeror will—

(i) Cooperate in any studies or surveys as may be required;

(ii) Submit periodic reports so the Government can determine the extent of compliance by the Contractor with the subcontracting plan;

(iii) Include subcontracting data for each order when reporting subcontracting achievements for indefinite-delivery, indefinite-quantity contracts with individual subcontracting plans where the contract is intended for use by multiple agencies;

(iv) Submit the Individual Subcontract Report (ISR) and/or the Summary Subcontract Report (SSR), in accordance with paragraph (I) of this clause using the SPR. The reports shall provide information on subcontract awards to small business concerns (including ANCs and Indian tribes that are not small businesses), veteran-owned small business concerns, service-disabled veteran-owned small business concerns, HUBZone small business concerns, small disadvantaged business concerns (including ANCs and Indian tribes that have not been certified by SBA as small disadvantaged businesses), women-owned small business concerns, and for NASA only, Historically Black Colleges and Universities and Minority Institutions. Reporting shall be in accordance with this clause, or as provided in agency regulations;

(v) Ensure that its subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using SPR;

(vi) Provide its prime contract number, its unique entity identifier, and the e-mail address of the Offeror's official responsible for acknowledging receipt of or rejecting the ISRs, to all first-tier subcontractors with subcontracting plans so they can enter this information into the SPR when submitting their ISRs; and

(vii) Require that each subcontractor with a subcontracting plan provide the prime contract number, its own unique entity identifier, and the e-mail address of the subcontractor's official responsible for acknowledging receipt of or rejecting the ISRs, to its subcontractors with subcontracting plans.

(11) A description of the types of records that will be maintained concerning procedures that have been adopted to comply with the requirements and goals in the plan, including establishing source lists; and a description of the Offeror's efforts to locate small business, VOSB, SDVOSB, HUBZone small business, SDB, and WOSB concerns and award subcontracts to them. The records shall include at least the following (on a plant-wide or company-wide basis, unless otherwise indicated):

(i) Source lists (e.g., SAM), guides, and other data that identify small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns.

(ii) Organizations contacted in an attempt to locate sources that are small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concerns.

(iii) Records on each subcontract solicitation resulting in an award of more than the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, indicating-

(A) Whether small business concerns were solicited and, if not, why not;

(B) Whether veteran-owned small business concerns were solicited and, if not, why not;

(C) Whether service-disabled veteran-owned small business concerns were solicited and, if not, why not;

(D) Whether HUBZone small business concerns were solicited and, if not, why not;

(E) Whether small disadvantaged business concerns were solicited and, if not, why not;

(F) Whether women-owned small business concerns were solicited and, if not, why not; and

(G) If applicable, the reason award was not made to a small business concern.

(iv) Records of any outreach efforts to contact-

(A) Trade associations;

(B) Business development organizations;

(C) Conferences and trade fairs to locate small, HUBZone small, small disadvantaged, service disabled veteran-owned, and women-owned small business sources; and

(D) Veterans service organizations.

(v) Records of internal guidance and encouragement provided to buyers through-

(A) Workshops, seminars, training, etc.; and

(B) Monitoring performance to evaluate compliance with the program's requirements.

(vi) On a contract-by-contract basis, records to support award data submitted by the offeror to the Government, including the name, address, and business size of each subcontractor. Contractors having commercial plans need not comply with this requirement.

(12) Assurances that the Offeror will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that it used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal. Responding to a request for a quote does not constitute use in preparing a bid or proposal. The Offeror used a small business concern in preparing the bid or proposal if-

(i) The Offeror identifies the small business concern as a subcontractor in the bid or proposal or associated small business subcontracting plan, to furnish certain supplies or perform a portion of the subcontract; or

(ii) The Offeror used the small business concern's pricing or cost information or technical expertise in preparing the bid or proposal, where there is written evidence of an intent or understanding that the small business concern will be awarded a subcontract for the related work if the Offeror is awarded the contract.

(13) Assurances that the Contractor will provide the Contracting Officer with a written explanation if the Contractor fails to acquire articles, equipment, supplies, services, or materials or obtain the performance of construction work as described in paragraph (d)(12) of this clause. The Contractor shall submit the written explanation to the Contracting Officer within 30 days of contract completion.

(14) Assurances that the Contractor will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to payment to or utilization of a subcontractor.

(15) Assurances that the Contractor will pay its small business subcontractors on time and in accordance with the terms and conditions of the underlying subcontract, and notify the Contracting Officer when the prime contractor makes either a reduced or an untimely payment to a small business subcontractor (see 52.242-5).

(e) In order to effectively implement this plan to the extent consistent with efficient contract performance, the Contractor shall perform the following functions:

(1) Assist small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns by arranging solicitations, time for the preparation of bids, quantities, specifications, and delivery schedules so as to facilitate the participation by such concerns. Where the Contractor's lists of potential small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business subcontractors are excessively long, reasonable effort shall be made to give all such small business concerns an opportunity to compete over a period of time.

(2) Provide adequate and timely consideration of the potentialities of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns in all "make-or-buy" decisions.

(3) Counsel and discuss subcontracting opportunities with representatives of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business firms.

(4) Confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern by accessing SAM or by accessing the Small Business Search (SBS) at <https://search.certifications.sba.gov/>.

(5) Provide notice to subcontractors concerning penalties and remedies for misrepresentations of business status as small, veteran-owned small business, HUBZone small, small disadvantaged, or women-owned small business for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the Contractor's subcontracting plan.

(6) For all competitive subcontracts over the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, in which a small business concern received a small business preference, upon determination of the successful subcontract offeror, prior to

award of the subcontract the Contractor must inform each unsuccessful small business subcontract offeror in writing of the name and location of the apparent successful offeror and if the successful subcontract offeror is a small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concern.

(7) Assign each subcontract the NAICS code and corresponding size standard that best describes the principal purpose of the subcontract.

(f) A master subcontracting plan on a plant or division-wide basis that contains all the elements required by paragraph (d) of this clause, except goals, may be incorporated by reference as a part of the subcontracting plan required of the Offeror by this clause; provided—

(1) The master subcontracting plan has been approved;

(2) The Offeror ensures that the master subcontracting plan is updated as necessary and provides copies of the approved master subcontracting plan, including evidence of its approval, to the Contracting Officer; and

(3) Goals and any deviations from the master subcontracting plan deemed necessary by the Contracting Officer to satisfy the requirements of this contract are set forth in the individual subcontracting plan.

(g) A commercial plan is the preferred type of subcontracting plan for contractors furnishing commercial products and commercial services. The commercial plan shall relate to the offeror's planned subcontracting generally, for both commercial and Government business, rather than solely to the Government contract. Once the Contractor's commercial plan has been approved, the Government will not require another subcontracting plan from the same Contractor while the plan remains in effect, as long as the product or service being provided by the Contractor continues to meet the definition of a commercial product or commercial service. A Contractor with a commercial plan shall comply with the reporting requirements stated in paragraph (d)(10) of this clause by submitting one SSR in SPR for all contracts covered by its commercial plan. A Contractor authorized to use a commercial subcontracting plan shall include in its subcontracting goals and in its SSR all indirect costs, with the exception of those such as the following: Employee salaries and benefits; payments for petty cash; depreciation; interest; income taxes; property taxes; lease payments; bank fees; fines, claims, and dues; original equipment manufacturer relationships during warranty periods (negotiated up front with the product); utilities and other services purchased from a municipality or an entity solely authorized by the municipality to provide those services in a particular geographical region; and philanthropic contributions. This report shall be monitored in SPR by the agency that approved the plan. This report shall be submitted within 45 days after the end of the Government's fiscal year.

(h) The Contracting Officer will consider prior compliance of the Offeror with other such subcontracting plans under previous contracts in determining the responsibility of the Offeror for award of the contract.

(i) A contract may have no more than one subcontracting plan. When a contract modification exceeds the subcontracting plan threshold in FAR 19.109(a), or an option is exercised, the

goals of the existing subcontracting plan shall be amended to reflect any new subcontracting opportunities. When the goals in a subcontracting plan are amended, these goal changes do not apply retroactively.

(j) Subcontracting plans are not required from subcontractors when the prime contract is awarded under FAR part 12, Acquisition of Commercial Products and Commercial Services, or when the subcontractor provides a commercial product or commercial service subject to the clause at FAR 52.244-6, Subcontracts for Commercial Products and Commercial Services, under a prime contract.

(k) The Contracting Officer will consider failure of the Contractor or subcontractor to comply in good faith with the clause of this contract entitled "Utilization Of Small Business Concerns," or an approved plan required by this clause, a material breach of the contract and may consider the failure in any past performance evaluation of the Contractor.

(l) The Contractor shall submit ISRs and SSRs using the web-based SPR. Do not include purchases from a corporation, company, or subdivision that is an affiliate of the Contractor or subcontractor in these reports. Treat subcontract awards by affiliates as subcontract awards by the Contractor. Limit subcontract award data reported by the Contractor and subcontractors to awards made to their immediate next-tier subcontractors. The Contractor and its subcontractors cannot take credit for awards made to lower tier subcontractors, unless the Contractor or subcontractor has been designated to receive a small business or SDB credit from an ANC or Indian tribe. Include in these reports only subcontracts involving performance in the United States or its outlying areas, with the exception of subcontracts under a contract awarded by the State Department or any other agency that has statutory or regulatory authority to require subcontracting plans for subcontracts performed outside the United States and its outlying areas.

(1) *ISR*. This report is not required for commercial plans. The report is required for each contract containing an individual subcontracting plan.

(i) The report shall be submitted semi-annually during contract performance for the periods ending March 31 and September 30. A report is also required for each contract within 45 days of contract completion. Reports are due 45 days after the close of each reporting period, unless otherwise directed by the Contracting Officer. Reports are required when due, regardless of whether there has been any subcontracting activity since the inception of the contract or the previous reporting period. When notified of any anomaly, discrepancy, or error in the ISR, the Contractor shall submit a corrected report within 30 days of receiving the notice.

(ii)(A) When a subcontracting plan contains separate goals for the base period of the contract and each option, the dollar goal inserted on this report shall be the sum of the base period through the current option; for example, for a report submitted after the second option is exercised, the dollar goal would be the sum of the goals for the basic contract, the first option, and the second option.

(B) If a subcontracting plan has been added to the contract pursuant to 19.302-1 or 19.301(e) the Contractor shall report its achievements on a cumulative basis from the date of incorporation of the subcontracting plan into the contract.

(iii) When a subcontracting plan includes indirect costs in the goals, include these costs in this report.

(iv) In the case of a subcontract with a subcontracting plan, the responsibility to monitor the ISR belongs to the entity that awarded the subcontract.

(2) SSR.

(i) Reports submitted under individual subcontracting plans—

(A) This report encompasses all subcontracting under prime contracts and subcontracts with an executive agency, regardless of the dollar value of the subcontracts. This report also includes indirect costs on a prorated basis when the indirect costs are excluded from the subcontracting goals.

(B) The report may be submitted on a corporate, company or subdivision (e.g. plant or division operating as a separate profit center) basis, unless otherwise directed by the agency.

(C) If the Contractor or a subcontractor is performing work for more than one executive agency, a separate report shall be submitted to each executive agency covering only that agency's contracts, provided at least one of that agency's contracts is over the applicable threshold specified in FAR 19.109(a), and the contract contains a subcontracting plan. For DoD, a consolidated report shall be submitted for all contracts awarded by military departments/agencies and/or subcontracts awarded by DoD prime contractors.

(D) The report shall be submitted annually by November 14 for the twelve month period ending September 30. When a Contracting Officer rejects an SSR, the Contractor shall submit a revised report within 30 days of receiving the notice of SSR rejection.

(E) Subcontract awards that are related to work for more than one executive agency shall be appropriately allocated.

(F) The responsibility to monitor SSRs in SPR, including SSRs submitted by subcontractors with subcontracting plans, belongs to the Government agency awarding the prime contracts unless stated otherwise in the contract.

(ii) *Reports submitted under a commercial plan-*

(A) The report shall include all subcontract awards under the commercial plan in effect during the Government's fiscal year and all indirect costs.

(B) The report shall be submitted annually, within thirty days after the end of the Government's fiscal year.

(C) If a Contractor has a commercial plan and is performing work for more than one executive agency, the Contractor shall specify the percentage of dollars attributable to each agency.

(D) The responsibility to monitor SSRs for commercial plans belongs to the Government agency that approved the commercial plan.

(End of Clause)

C.4 FAR 52.222-90 ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS (APR 2026)

(a) *Definitions.* As used in this clause— Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor. Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

- (1) The Contractor will not engage in any racially discriminatory DEI activities;
- (2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;
- (3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;
- (4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and
- (5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.
- (6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4). (c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of Clause)

C.5 52.223-9 ESTIMATE OF PERCENTAGE OF RECOVERED MATERIAL CONTENT FOR EPA-DESIGNATED ITEMS (MAY 2008)

(a) *Definitions.* As used in this clause—

"Postconsumer material" means a material or finished product that has served its intended use and has been discarded for disposal or recovery, having completed its life as a consumer item. Postconsumer material is a part of the broader category of "recovered material."

"Recovered material" means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process.

(b) The Contractor, on completion of this contract, shall—

(1) Estimate the percentage of the total recovered material content for EPA-designated item(s) delivered and/or used in contract performance, including, if applicable, the percentage of postconsumer material content; and

(2) Submit this estimate to Post Award CO (TBD).

(End of Clause)

C.6 52.228-5 INSURANCE—WORK ON A GOVERNMENT INSTALLATION (JAN 1997)

(a) The Contractor shall, at its own expense, provide and maintain during the entire performance of this contract, at least the kinds and minimum amounts of insurance required in the Schedule or elsewhere in the contract.

(b) Before commencing work under this contract, the Contractor shall notify the Contracting Officer in writing that the required insurance has been obtained. The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any material change adversely affecting the Government's interest shall not be effective—

(1) For such period as the laws of the State in which this contract is to be performed prescribe; or

(2) Until 30 days after the insurer or the Contractor gives written notice to the Contracting Officer, whichever period is longer.

(c) The Contractor shall insert the substance of this clause, including this paragraph (c), in subcontracts under this contract that require work on a Government installation and shall require subcontractors to provide and maintain the insurance required in the Schedule or elsewhere in the contract. The Contractor shall maintain a copy of all subcontractors' proofs of required insurance, and shall make copies available to the Contracting Officer upon request.

(End of Clause)

C.7 SUPPLEMENTAL INSURANCE REQUIREMENTS

In accordance with FAR 28.307-2 and FAR 52.228-5, the following minimum coverage shall apply to this contract:

(a) Workers' compensation and employers liability: Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a Contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least \$100,000 is required, except in States

with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.

(b) General Liability: \$500,000.00 per occurrences.

(c) Automobile liability: \$200,000.00 per person; \$500,000.00 per occurrence and \$20,000.00 property damage.

(d) The successful bidder must present to the Contracting Officer, prior to award, evidence of general liability insurance without any exclusionary clauses for asbestos that would void the general liability coverage.

(End of Clause)

C.8 52.228-16 PERFORMANCE AND PAYMENT BONDS—OTHER THAN CONSTRUCTION (NOV 2006)

(a) *Definitions.* As used in this clause—

"Original contract price" means the award price of the contract or, for requirements contracts, the price payable for the estimated quantity; or, for indefinite-quantity contracts, the price payable for the specified minimum quantity. Original contract price does not include the price of any options, except those options exercised at the time of contract award.

(b) The Contractor shall furnish a performance bond (Standard Form 1418) for the protection of the Government in an amount equal to 100 percent of the original contract price and a payment bond (Standard Form 1416) in an amount equal to 100 percent of the original contract price.

(c) The Contractor shall furnish all executed bonds, including any necessary reinsurance agreements, to the Contracting Officer, within 7 days, but in any event, before starting work.

(d) The Government may require additional performance and payment bond protection if the contract price is increased. The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bonds or to obtain additional bonds.

(e) The bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in Treasury Department Circular 570, individual sureties, or by other acceptable security such as postal money order, certified check, cashier's check, irrevocable letter of credit, or, in accordance with Treasury Department regulations, certain bonds or notes of the United States. Treasury Circular 570 is published in the *Federal Register*, or may be obtained from the:

U.S. Department of Treasury
Financial Management Service
Surety Bond Branch
3700 East West Highway, Room 6F01
Hyattsville, MD 20782.
Or via the internet at <http://www.fms.treas.gov/c570/>.

(End of Clause)

C.9 52.229-3 FEDERAL, STATE, AND LOCAL TAXES (SEP 2025) (DEVIATION)

(a) As used in this clause—

After-imposed Federal tax means any new or increased Federal excise tax or duty, or tax that was exempted or excluded on the contract date but whose exemption was later revoked or reduced during the contract period, on the transactions or property covered by this contract that the Contractor is required to pay or bear as the result of legislative, judicial, or administrative action taking effect after the contract date. It does not include social security tax or other employment taxes.

After-relieved Federal tax means any amount of Federal excise tax or duty, except social security or other employment taxes, that would otherwise have been payable on the transactions or property covered by this contract, but which the Contractor is not required to pay or bear, or for which the Contractor obtains a refund or drawback, as the result of legislative, judicial, or administrative action taking effect after the contract date.

All applicable Federal, State, and local taxes and duties means all taxes and duties, in effect on the contract date, that the taxing authority is imposing and collecting on the transactions or property covered by this contract.

Contract date means the date set for bid opening or, if this is a negotiated contract or a modification, the effective date of this contract or modification.

Local taxes includes taxes imposed by a possession or territory of the United States, Puerto Rico, or the Northern Mariana Islands, if the contract is performed wholly or partly in any of those areas.

(b)(1) The contract price includes all applicable Federal, State, and local taxes and duties, except as provided in subparagraph (b)(2)(i) of this clause.

(2) Taxes imposed under 26 U.S.C. 5000C may not be—

(i) Included in the contract price; nor

(ii) Reimbursed.

(c) The contract price shall be increased by the amount of any after-imposed Federal tax, provided the Contractor warrants in writing that no amount for such newly imposed Federal excise tax or duty or rate increase was included in the contract price, as a contingency reserve or otherwise.

(d) The contract price shall be decreased by the amount of any after-relieved Federal tax.

(e) The contract price shall be decreased by the amount of any Federal excise tax or duty, except social security or other employment taxes, that the Contractor is required to pay or bear, or does not obtain a refund of, through the Contractor's fault, negligence, or failure to follow instructions of the Contracting Officer.

(f) No adjustment shall be made in the contract price under this clause unless the amount of the adjustment exceeds \$250.

(g) The Contractor shall promptly notify the Contracting Officer of all matters relating to any Federal excise tax or duty that reasonably may be expected to result in either an increase or decrease in the contract price and shall take appropriate action as the Contracting Officer directs.

(h) The Government shall, without liability, furnish evidence appropriate to establish exemption from any Federal, State, or local tax when the Contractor requests such evidence and a reasonable basis exists to sustain the exemption.

(End of Clause)

C.10 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency

information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangement means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is

to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Office of Foreign Assets Control Restrictions.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) Sudan prohibition. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) Iran prohibitions.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report.*

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
- (ii) Name of the covered article or source subject to a FASCSA order;
- (iii) The specific FASCSA order the product or service does not comply with;
- (iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

C.11 52.240-93 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (DEVIATION) (NOV 2025)

(a) Definitions. As used in this clause—

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information—

(1) Means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government; but

(2) Does not include information provided by the Government to the public (such as on public websites) or simple transactional information (such as information necessary to process payments).

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements.

(1) Basic requirements. The Contractor shall safeguard its covered contractor information systems by implementing, at minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal departments and agencies relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products, other than commercially available off-the-shelf items, or commercial services), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of Provision)

C.12 52.246-20 WARRANTY OF SERVICES (MAY 2001)

(a) *Definition.* "Acceptance," as used in this clause, means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing and identified supplies, or approves specific services, as partial or complete performance of the contract.

(b) Notwithstanding inspection and acceptance by the Government or any provision concerning the conclusiveness thereof, the Contractor warrants that all services performed under this contract will, at the time of acceptance, be free from defects in workmanship and conform to the requirements of this contract. The Contracting Officer shall give written notice of any defect or nonconformance to the Contractor See Scope of Work for all warranty details. This notice shall state either (1) that the Contractor shall correct or reperform any defective or nonconforming services, or (2) that the Government does not require correction or reperformance.

(c) If the Contractor is required to correct or reperform, it shall be at no cost to the Government, and any services corrected or reperformed by the Contractor shall be subject to this clause to the same extent as work initially performed. If the Contractor fails or refuses to correct or reperform, the Contracting Officer may, by contract or otherwise, correct or replace with similar services and charge to the Contractor the cost occasioned to the Government thereby, or make an equitable adjustment in the contract price.

(d) If the Government does not require correction or reperformance, the Contracting Officer shall make an equitable adjustment in the contract price.

(End of Clause)

C.13 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any VA Acquisition Regulation (48 CFR Chapter 8) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

C.14 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52#FAR_52_252_2

<https://www.va.gov/oal/library/vaar/index.asp>

(End of Clause)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.202-1	DEFINITIONS	JUN 2020
52.203-3	GRATUITIES	APR 1984
52.203-5	COVENANT AGAINST CONTINGENT FEES	MAY 2014
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT ALTERNATE I (NOV 2021)	JUN 2020
52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	JUN 2020
52.203-13	CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT	NOV 2021
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN 2017
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	JAN 2011
52.204-13	SYSTEM FOR AWARD MANAGEMENT—MAINTENANCE (DEVIATION)	NOV 2025
52.204-14	SERVICE CONTRACT REPORTING REQUIREMENTS (DEVIATION)	NOV 2025
52.204-19	INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS	DEC 2014
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (DEVIATION NOV 2025)	JAN 2025

52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (DEVIATION NOV 2025)	OCT 2018
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (DEVIATION NOV 2025)	NOV 2015
52.214-26	AUDIT AND RECORDS-SEALED BIDDING (DEVIATION NOV 2025)	JUN 2020
52.214-27	PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA—MODIFICATIONS—SEALED BIDDING	JUN 2020
52.214-28	SUBCONTRACTOR CERTIFIED COST OR PRICING DATA – MODIFICATIONS – SEALED BIDDING (DEVIATION NOV 2025)	JUN 2020
52.214-29	ORDER OF PRECEDENCE—SEALED BIDDING	JAN 1986
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (DEVIATION)	NOV 2025
52.219-16	LIQUIDATED DAMAGES—SUBCONTRACTING PLAN (DEVIATION)	NOV 2025
52.219-28	POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION ALTERNATE I (DEVIATION) (NOV 2025)	NOV 2025
52.222-3	CONVICT LABOR (DEVIATION)	NOV 2025
52.222-6	CONSTRUCTION WAGE RATE REQUIREMENTS (DEVIATION)	NOV 2025
52.222-7	WITHHOLDING OF FUNDS (DEVIATION)	NOV 2025
52.222-8	PAYROLLS AND BASIC RECORDS (DEVIATION)	NOV 2025
52.222-10	COMPLIANCE WITH COPELAND ACT REQUIREMENTS (DEVIATION)	NOV 2025
52.222-11	SUBCONTRACTS (LABOR STANDARDS) (DEVIATION)	NOV 2025
52.222-12	CONTRACT TERMINATION—DEBARMENT	MAY 2014
52.222-13	COMPLIANCE WITH CONSTRUCTION WAGE RATE REQUIREMENTS AND RELATED REGULATIONS	MAY 2014
52.222-14	DISPUTES CONCERNING LABOR STANDARDS (DEVIATION)	NOV 2025
52.222-15	CERTIFICATION OF ELIGIBILITY	MAY 2014
52.222-35	EQUAL OPPORTUNITY FOR VETERANS (DEVIATION)	NOV 2025
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (DEVIATION)	NOV 2025
52.222-37	EMPLOYMENT REPORTS ON VETERANS (DEVIATION)	NOV 2025
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEVIATION)	NOV 2025

52.222-50	COMBATING TRAFFICKING IN PERSONS (DEVIATION)	NOV 2025
52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION (DEVIATION)	NOV 2025
52.222-55	MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026 (DEVIATION)	NOV 2025
52.222-62	PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706 (DEVIATION NOV 2025)	JAN 2022
52.223-2	REPORTING OF BIOBASED PRODUCTS UNDER SERVICE AND CONSTRUCTION CONTRACTS (DEVIATION)	NOV 2025
52.223-5	POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION	MAY 2024
52.223-11	OZONE-DEPLETING SUBSTANCES (DEVIATION)	NOV 2025
52.223-12	MAINTENANCE, SERVICE, REPAIR, OR DISPOSAL OF REFRIGERATION EQUIPMENT AND AIR CONDITIONERS (DEVIATION)	NOV 2025
52.223-20	AEROSOLS	MAY 2024
52.223-21	FOAMS	MAY 2024
52.223-23	SUSTAINABLE PRODUCTS (DEVIATION)	NOV 2025
52.225-3	BUY AMERICAN—FREE TRADE AGREEMENTS—ISRAELI TRADE ACT (DEVIATION)	NOV 2025
52.225-5	TRADE AGREEMENTS	NOV 2023
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	MAY 2024
52.227-1	AUTHORIZATION AND CONSENT	JUN 2020
52.227-2	NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT	JUN 2020
52.228-2	ADDITIONAL BOND SECURITY	OCT 1997
52.229-12	TAX ON CERTAIN FOREIGN PROCUREMENTS (DEVIATION SEP 2025)	FEB 2021
52.232-23	ASSIGNMENT OF CLAIMS	MAY 2014
52.232-29	TERMS FOR FINANCING OF PURCHASES OF COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	NOV 2021
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER— SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)	MAR 2023
52.233-1	DISPUTES (DEVIATION NOV 2025)	MAY 2014

52.233-3	PROTEST AFTER AWARD (DEVIATION NOV 2025)	AUG 1996
52.233-4	APPLICABLE LAW FOR BRANCH OF CONTRACT CLAIM (DEVIATION NOV 2025)	OCT 2004
52.236-2	DIFFERING SITE CONDITIONS (DEVIATION)	APR 1984
52.236-3	SITE INVESTIGATION AND CONDITIONS AFFECTING THE WORK (DEVIATION)	APR 1984
52.236-5	MATERIAL AND WORKMANSHIP (DEVIATION)	APR 1984
52.236-6	SUPERINTENDENCE BY THE CONTRACTOR (DEVIATION)	APR 1984
52.236-13	ACCIDENT PREVENTION (DEVIATION)	NOV 1991
52.236-21	SPECIFICATIONS AND DRAWINGS FOR CONSTRUCTION (DEVIATION)	FEB 1997
52.237-2	PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION	APR 1984
52.237-3	CONTINUITY OF SERVICES	JAN 1991
52.242-13	BANKRUPTCY	JUL 1995
52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION OCT 2025)	JAN 2025

C.15 VAAR 852.201-70 CONTRACTING OFFICER'S REPRESENTATIVE (DEC 2022)

The Contracting Officer reserves the right to designate representatives to act for him/her in furnishing technical guidance and advice or generally monitor the work to be performed under this contract. Such designation will be in writing and will define the scope and limitation of the designee's authority. A copy of the designation letter shall be furnished to the Contractor.

(End of Clause)

C.16 VAAR 852.203-70 COMMERCIAL ADVERTISING (MAY 2018)

The Contractor shall not make reference in its commercial advertising to Department of Veterans Affairs contracts in a manner that states or implies the Department of Veterans Affairs approves or endorses the Contractor's products or services or considers the Contractor's products or services superior to other products or services.

(End of Clause)

C.17 VAAR 852.204-70 PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (DEVIATION) (MAR 2026)

(a) The Contractor shall comply with current Department of Veterans Affairs policy for personal identity verification of all employees performing under this contract when physical access to VA facilities, and/or logical access to VA information and VA information systems is required.

(b) The Contractor shall insert this clause in all subcontracts when the subcontractor's employees will require physical access to VA facilities, and/or logical access to VA information and VA information systems.

(End of Clause)

C.18 VAAR 852.204-71 INFORMATION AND INFORMATION SYSTEMS SECURITY (FEB 2023)

(a) *Definitions.* As used in this clause—

Business Associate means an entity, including an individual (other than a member of the workforce of a covered entity), company, organization or another covered entity, as defined by the Health Insurance Portability and Accountability Act of 1996 (HIPAA) Privacy Rule, that performs or assists in the performance of a function or activity on behalf of the Veterans Health Administration (VHA) that involves the creating, receiving, maintaining, transmitting of, or having access to, protected health information (PHI). The term also includes a subcontractor of a business associate that creates, receives, maintains, or transmits PHI on behalf of the business associate.

Business Associate Agreement (BAA) means the agreement, as dictated by the Privacy Rule, between VHA and a business associate, which must be entered into in addition to the underlying contract for services and before any release of PHI can be made to the business associate, in order for the business associate to perform certain functions or activities on behalf of VHA.

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information whether automated or manual.

Information technology (see FAR [2.101](#)) also means Information and Communication Technology (ICT).

Information technology-related contracts means those contracts which include services (including support services), and related resources for information technology as defined in [802.101](#).

Privacy officer means the VA official with responsibility for implementing and oversight of privacy related policies and practices that impact a given VA acquisition.

Sensitive personal information means, with respect to an individual, any information about the individual maintained by VA, including but not limited to the following:

- (1) Education, financial transactions, medical history, and criminal or

employment history.

(2) Information that can be used to distinguish or trace the individual's identity, including but not limited to name, social security number, date and place of birth, mother's maiden name, or biometric records.

Security plan means a formal document that provides an overview of the security requirements for an information system or an information security program and describes the security controls in place or planned for meeting those requirements.

VA Information Security Rules of Behavior for Organizational Users (VA National Rules of Behavior) means a set of VA rules that describes the responsibilities and expected behavior of users of VA information or information systems.

VA sensitive information means all VA data, on any storage media or in any form or format, which requires protection due to the risk of harm that could result from inadvertent or deliberate disclosure, alteration, or destruction of the information and includes sensitive personal information. The term includes information where improper use or disclosure could adversely affect the ability of VA to accomplish its mission, proprietary information, records about individuals requiring protection under various confidentiality provisions such as the Privacy Act and the HIPAA Privacy Rule, and information that can be withheld under the Freedom of Information Act. Examples of VA sensitive information include the following: individually-identifiable medical, benefits, and personnel information; financial, budgetary, research, quality assurance, confidential commercial, critical infrastructure, investigatory, and law enforcement information; information that is confidential and privileged in litigation such as information protected by the deliberative process privilege, attorney work-product privilege, and the attorney-client privilege; and other information which, if released, could result in violation of law or harm or unfairness to any individual or group, or could adversely affect the national interest or the conduct of Federal programs.

(b) *General.* Contractors, subcontractors, their employees, third-parties, and business associates with access to VA information, information systems, or information technology (IT) or providing and accessing IT-related goods and services, shall adhere to [VA Directive 6500](#), VA Cybersecurity Program, and the directives and handbooks in the VA 6500 series related to VA information (including VA sensitive information and sensitive personal information and information systems security and privacy), as well as those set forth in the contract specifications, statement of work, or performance work statement. These include, but are not limited to, [VA Handbook 6500.6](#), Contract Security; and VA [Directive](#) and [Handbook](#) 0710, *Personnel Security and Suitability Program*, which establishes VA's procedures, responsibilities, and processes for complying with current Federal law, Executive Orders, policies, regulations, standards and guidance for protecting VA information, information systems (see [802.101](#), Definitions) security and privacy, and adhering to personnel security requirements when accessing VA information or information systems.

(c) *Access to VA information and VA information systems.* (1) Contractors are limited in their request for logical or physical access to VA information or VA information systems for their employees, subcontractors, third parties and business associates to the extent necessary to perform the services or provide the goods as specified in the contracts, agreements, task, delivery or purchase orders.

(2) All Contractors, subcontractors, third parties, and business associates working with VA information are subject to the same investigative requirements as those of VA appointees or employees who have access to the same types of information. The level and process of

background security investigations for contractors to access VA information and VA information systems shall be in accordance with VA [Directive](#) and [Handbook](#) 0710, *Personnel Security and Suitability Program*.

(3) Contractors, subcontractors, third parties, and business associates who require access to national security programs must have a valid security clearance.

(4) HIPAA Business Associate Agreement requirement. Contractors shall enter into a Business Associate Agreement (BAA) with VHA, VA's Covered Entity, when contract requirements and access to protected health information is required and when requested by the Contracting Officer, or the Contracting Officer's Representative (COR) (see VAAR [824.103-70](#)). Under the HIPAA Privacy and Security Rules, a Covered Entity (VHA) must have a satisfactory assurance that its PHI will be safeguarded from misuse. To do so, a Covered Entity enters into a BAA with a contractor (now the business associate), which obligates the business associate to only use the Covered Entity's PHI for the purposes for which it was engaged, provide the same protections and safeguards as is required from the Covered Entity, and agree to the same disclosure restrictions to PHI that is required of the Covered Entity in situations where a contractor—

(i) Creates, receives, maintains, or transmits VHA PHI or that will store, generate, access, exchange, process, or utilize such PHI in order to perform certain health care operations activities or functions on behalf of the Covered Entity; or

(ii) Provides one or more of the services specified in the Privacy Rule to or for the Covered Entity.

(A) *Contractors or entities required to execute BAAs for contracts and other agreements become VHA business associates.* BAAs are issued by VHA or may be issued by other VA programs in support of VHA. The HIPAA Privacy Rule requires VHA to execute compliant BAAs with persons or entities that create, receive, maintain, or transmit VHA PHI or that will store, generate, access, exchange, process, or utilize such PHI in order to perform certain activities, functions or services to, for, or on behalf of VHA. There may be other VA components or staff offices which also provide certain services and support to VHA and must receive PHI in order to do so. If these components award contracts or enter into other agreements, purchase/delivery orders, modifications and issue governmentwide purchase card transactions to help in the delivery of these services to VHA, they will also fall within the requirement to obtain a satisfactory assurance from these contractors by executing a BAA.

(B) *BAA requirement flow down to subcontractors.* A prime Contractor required to execute a BAA shall also obtain a satisfactory assurance, in the form of a BAA, that any of its subcontractors who will also create, receive, maintain, or transmit VHA PHI or that will store, generate, access, exchange, process, or utilize such PHI will comply with HIPAA requirements to the same degree as the Contractor. Contractors employing a subcontractor who creates, receives, maintains, or transmits VHA PHI or that will store, generate, access, exchange, process, or utilize such VHA PHI under a contract or agreement is required to execute a BAA with each of its subcontractors which also obligates the subcontractor (i.e., also a business associate) to provide the same protections and safeguards and agree to the same disclosure restrictions to VHA's PHI that is required of the Covered Entity and the prime Contractor.

(d) *Contractor operations required to be in United States.* Custom software development and outsourced operations must be located in the U.S. to the maximum extent practicable. If such services are proposed to be performed outside the continental United States, and are not otherwise disallowed by other Federal law, regulations or policy, or other VA policy or other

mandates as stated in the contract, specifications, statement of work or performance work statement (including applicable Business Associate Agreements), the Contractor/subcontractor must state in its proposal where all non-U.S. services are provided. At a minimum, the Contractor/subcontractor must include a detailed Information Technology Security Plan, for review and approval by the Contracting Officer, specifically to address mitigation of the resulting problems of communication, control, and data protection.

(e) Contractor/subcontractor employee reassignment and termination notification.

Contractors and subcontractors shall provide written notification to the Contracting Officer and Contracting Officer's Representative (COR) immediately, and not later than four (4) hours, when an employee working on a VA information system or with access to VA information is reassigned or leaves the Contractor or subcontractor's employment on the cognizant VA contract. The Contracting Officer and COR must also be notified immediately by the Contractor or subcontractor prior to an unfriendly termination.

(f) VA information custodial requirements. (1) Release, publication, and use of data.

Information made available to a Contractor or subcontractor by VA for the performance or administration of a contract or information developed by the Contractor/subcontractor in performance or administration of a contract shall be used only for the stated contract purpose and shall not be used in any other way without VA's prior written approval. This clause expressly limits the Contractor's/subcontractor's rights to use data as described in Rights in Data—General, FAR [52.227-14\(d\)](#).

(2) Media sanitization. VA information shall not be co-mingled with any other data on the Contractor/subcontractor's information systems or media storage systems in order to ensure federal and VA requirements related to data protection, information segregation, classification requirements, and media sanitization can be met (see [VA Directive 6500](#), VA Cybersecurity Program). VA reserves the right to conduct scheduled or unscheduled on-site inspections, assessments, or audits of Contractor and subcontractor IT resources, information systems and assets to ensure data security and privacy controls, separation of data and job duties, and destruction/media sanitization procedures are in compliance with Federal and VA requirements. The Contractor and subcontractor will provide all necessary access and support to VA and/or GAO staff during periodic control assessments or audits.

(3) Data retention, destruction, and contractor self-certification. The Contractor and its subcontractors are responsible for collecting and destroying any VA data provided, created, or stored under the terms of this contract, to a point where VA data or materials are no longer readable or reconstructable to any degree, in accordance with [VA Directive 6371](#), Destruction of Temporary Paper Records, or subsequent issue. Prior to termination or completion of this contract, the Contractor/subcontractor must provide its plan for destruction of all VA data in its possession according to [VA Directive 6500](#), and VA Cybersecurity Program, including compliance with National Institute of Standards and Technology (NIST) 800-88, Guidelines for Media Sanitization, for the purposes of media sanitization on all IT equipment. The Contractor must certify in writing to the Contracting Officer within 30 days of termination of the contract that the data destruction requirements in this paragraph have been met.

(4) Return of VA data and information. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to the VA (as stipulated by the Contracting Officer or the COR) or the Contractor/subcontractor must hold it until otherwise directed. Items returned will be hand carried, securely mailed, emailed, or securely electronically transmitted to the Contracting Officer or to the address as provided in the contract or by the assigned COR, and/or accompanying BAA. Depending on the method of return, Contractor/subcontractor must store, transport, or transmit VA sensitive information, when permitted by the contract using VA-approved encryption tools that are, at a minimum, validated

under Federal Information Processing Standards (FIPS) 140-3 (or its successor). If mailed, Contractor/subcontractor must send via a trackable method (USPS, UPS, Federal Express, etc.) and immediately provide the Contracting Officer with the tracking information. No information, data, documentary material, records or equipment will be destroyed unless done in accordance with the terms of this contract and the VHA Records Control Schedule 10-1.

(5) *Use of VA data and information.* The Contractor/subcontractor must receive, gather, store, back up, maintain, use, disclose and dispose of VA information only in compliance with the terms of the contract and applicable Federal and VA information confidentiality and security laws, regulations and policies. If Federal or VA information confidentiality and security laws, regulations and policies become applicable to the VA information or information systems after execution of the contract, or if the National NIST issues or updates applicable FIPS or Special Publications (SP) after execution of this contract, the parties agree to negotiate in good faith to implement the information confidentiality and security laws, regulations and policies for this contract as a result of any updates, if required.

(6) *Copying VA data or information.* The Contractor/subcontractor shall not make copies of VA information except as authorized and necessary to perform the terms of the contract or to preserve electronic information stored on Contractor/subcontractor electronic storage media for restoration in case any electronic equipment or data used by the Contractor/subcontractor needs to be restored to an operating state. If copies are made for restoration purposes, after the restoration is complete, the copies must be appropriately destroyed.

(7) *Violation of information custodial requirements.* If VA determines that the Contractor has violated any of VA's information confidentiality, privacy, or security provisions, it shall be sufficient grounds for VA to withhold payment to the Contractor or third-party or terminate the contract for default in accordance with FAR part [49](#) or terminate for cause in accordance with FAR [12.403](#).

(8) *Encryption.* The Contractor/subcontractor must store, transport, or transmit VA sensitive information, when permitted by the contract, using cryptography, and VA-approved encryption tools that are, at a minimum, validated under FIPS 140-3 (or its successor).

(9) *Firewall and web services security controls.* The Contractor/subcontractor's firewall and web services security controls, if applicable, shall meet or exceed VA's minimum requirements. VA Configuration Guidelines are available upon request.

(10) *Disclosure of VA data and information.* Except for uses and disclosures of VA information authorized in a cognizant contract for performance of the contract, the Contractor/subcontractor may use and disclose VA information only in two other situations: (i) subject to paragraph (f)(10) of this section, in response to a court order from a court of competent jurisdiction, or (ii) with VA's prior written approval. The Contractor/subcontractor must refer all requests for, demands for production of, or inquiries about, VA information and information systems to the Contracting Officer for response. If the Contractor/subcontractor is in receipt of a court order or other request or believes it has a legal requirement to disclose VA information, that Contractor/subcontractor shall immediately refer such court order or other request to the Contracting Officer for response. If the Contractor or subcontractor discloses information on behalf of VHA, the Contractor and/or subcontractor must maintain an accounting of disclosures. Accounting of Disclosures documentation maintained by the Contractor/subcontractor will include the name of the individual to whom the information pertains, the date of each disclosure, the nature or description of the information disclosed, a brief statement of the purpose of each disclosure or, in lieu of such statement, a copy of a written request for a disclosure, and the name and address of the person or agency to whom the disclosure was made. The Contractor/subcontractor will provide its Accounting of

Disclosures upon request and within 15 calendar days to the assigned COR and Privacy Officer. Accounting of disclosures should be provided electronically via encrypted email to the COR and designated VA facility Privacy Officer as provided in the contract, BAA, or by the Contracting Officer. If providing the Accounting of Disclosures electronically cannot be done securely, the Contractor/subcontractor will provide copies via trackable methods (UPS, USPS, Federal Express, etc.) immediately, providing the designated COR and Privacy Officer with the tracking information.

(11) *Compliance with privacy statutes and applicable regulations.* The Contractor/subcontractor shall not disclose VA information protected by any of VA's privacy statutes or applicable regulations including but not limited to: the Privacy Act of 1974, [38 U.S.C. 5701](#), confidential nature of claims, [38 U.S.C. 5705](#), confidentiality of medical quality assurance records and/or [38 U.S.C. 7332](#), confidentiality of certain health records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse, or infection with human immunodeficiency virus or the HIPAA Privacy Rule. If the Contractor/subcontractor is in receipt of a court order or other requests for VA information or has questions if it can disclose information protected under the above-mentioned confidentiality statutes because it is required by law, that Contractor/subcontractor shall immediately refer such court order or other request to the Contracting Officer for response.

(g) *Report of known or suspected security/privacy incident.* The Contractor, subcontractor, third-party affiliate or business associate, and its employees shall notify VA immediately via the Contracting Officer and the COR or within one (1) hour of an incident which is an occurrence (including the discovery or disclosure of successful exploits of system vulnerability) that (A) actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or the availability of its data and operations, or of its information or information system(s); or (B) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies. The initial notification may first be made verbally but must be followed up in writing within one (1) hour. See VA Data Breach Response Service at https://www.oprm.va.gov/dbrs/about_dbrs.aspx. Report all actual or suspected security/privacy incidents and report the information to the Contracting Officer and the COR as identified in the contract or as directed in the contract, within one hour of discovery or suspicion.

(1) Such issues shall be remediated as quickly as is practical, but in no event longer than 1 day. The Contractor shall notify the Contracting Officer in writing.

(2) When the security fixes involve installing third party patched (e.g., Microsoft OS patches or Adobe Acrobat), the Contractor will provide written notice to VA that the patch has been validated as not affecting the systems within 10 working days. When the Contractor is responsible for operations or maintenance of the systems, they shall apply the security fixes within 10 days.

(3) All other vulnerabilities shall be remediated in a timely manner based on risk, but within 60 days of discovery or disclosure. Contractors shall notify the Contracting Officer, and COR within 2 business days after remediation of the identified vulnerability. Exceptions to this paragraph (e.g., for the convenience of VA) must be requested by the Contractor through the COR and shall only be granted with approval of the Contracting Officer and the VA Assistant Secretary for Office of Information and Technology. These exceptions will be tracked by the Contractor in concert with the Government in accordance with [VA Directive 6500](#) and related VA Handbooks.

(h) *Security and privacy incident investigation.* (1) The term "privacy incident" means the unauthorized disclosure or use of VA information protected under a confidentiality statute or regulation.

(2) The term "security incident" means an occurrence that (A) actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or availability of information systems; or (B) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable policies. The Contractor/ subcontractor shall immediately notify the Contracting Officer and COR for the contract of any known or suspected security or privacy incident, or any other unauthorized disclosure of sensitive information, including that contained in system(s) to which the Contractor/subcontractor has access.

(3) To the extent known by the Contractor/subcontractor, the Contractor/ subcontractor's notice to VA shall identify the information involved, the circumstances surrounding the incident (including to whom, how, when, and where the VA information or assets were placed at risk or compromised), and any other information that the Contractor/subcontractor considers relevant.

(4) With respect to unsecured PHI, the Business Associate is deemed to have discovered a security incident as defined above when the Business Associate either knew, or by exercising reasonable diligence should have been known to an employee of the Business Associate. Upon discovery, the Business Associate must notify VHA of the security incident immediately within one hour of discovery or suspicion as agreed to in the BAA.

(5) In instances of theft or break-in or other criminal activity, the Contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG and the VA Office of Security and Law Enforcement. The Contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The Contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

(i) *Data breach notification requirements.* (1) This contract may require access to sensitive personal information. If so, the Contractor is liable to VA for liquidated damages in the event of a data breach involving any VA sensitive personal information the Contractor/Subcontractor processes or maintains under the contract as set forth in clause [852.211-76](#), Liquidated Damages—Reimbursement for Data Breach Costs.

(2) The Contractor/subcontractor shall provide notice to VA of a privacy or security incident as set forth in the Security and Privacy Incident Investigation section of this clause. The term 'data breach' means the loss, theft, or other unauthorized access, or any access other than that incidental to the scope of employment, to data containing sensitive personal information, in electronic or printed form, that results in the potential compromise of the confidentiality or integrity of the data. The Contractor shall fully cooperate with VA or third-party entity performing an independent risk analysis on behalf of VA. Failure to cooperate may be deemed a material breach and grounds for contract termination.

(3) The Contractor/subcontractor shall fully cooperate with VA or any Government agency conducting an analysis regarding any notice of a data breach or potential data breach or security incident which may require the Contractor to provide information to the Government or third-party performing a risk analysis for VA, and shall address all relevant information concerning the data breach, including the following:

- (i) Nature of the event (loss, theft, unauthorized access).
- (ii) Description of the event, including—

- (A) Date of occurrence;
 - (B) Date of incident detection;
 - (C) Data elements involved, including any PII, such as full name, social security number, date of birth, home address, account number, disability code.
 - (D) Number of individuals affected or potentially affected.
 - (E) Names of individuals or groups affected or potentially affected.
 - (F) Ease of logical data access to the lost, stolen or improperly accessed data in light of the degree of protection for the data, e.g., unencrypted, plain text.
 - (G) Amount of time the data has been out of VA control.
 - (H) The likelihood that the sensitive personal information will or has been compromised (made accessible to and usable by unauthorized persons).
 - (I) Known misuses of data containing sensitive personal information, if any.
 - (J) Assessment of the potential harm to the affected individuals.
 - (K) Data breach analysis as outlined in [6500.2 Handbook](#), Management of Breaches Involving Sensitive Personal Information, as appropriate.
 - (L) Whether credit protection services may assist record subjects in avoiding or mitigating the results of identity theft based on the sensitive personal information that may have been compromised.
 - (M) Steps taken in response to mitigate or prevent a repetition of the incident.
- (j) *Training.* (1) All Contractor employees and subcontractor employees requiring access to VA information or VA information systems shall complete the following before being granted access to VA information and its systems:
- (i) On an annual basis, successfully complete the VA Privacy and Information Security Awareness and VA Information Security Rules of Behavior training.
 - (ii) On an annual basis, sign and acknowledge (either manually or electronically) understanding of and responsibilities for compliance with the VA Information Security Rules of Behavior for Organizational Users, relating to access to VA information and information systems.
 - (iii) Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system access.
- (2) The Contractor shall provide to the Contracting Officer and/or the COR a copy of the training certificates and affirmation that VA Information Security Rules of Behavior for Organizational Users signed by each applicable employee have been completed and submitted within five (5) days of the initiation of the contract and annually thereafter, as required.

(3) Failure to complete the mandatory annual training and acknowledgement of the VA Information Security Rules of Behavior, within the timeframe required, is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the training and documents are complete.

(k) *Subcontract flow down*. The Contractor shall include the substance of this clause, including this paragraph (k), in subcontracts, third-party agreements, and BAAs, of any amount and in which subcontractor employees, third-party servicers/employees, and business associates will perform functions where they will have access to VA information (including VA sensitive information, *i.e.*, sensitive personal information and protected health information), information systems, information technology (IT) or providing and accessing information technology-related contract services, support services, and related resources (see VAAR [802.101](#) definition of information technology-related contracts).

(End of Clause)

C.19 VAAR 852.204-72 PERSONNEL VETTING AND CREDENTIALING (MAR 2026)

(a) Definitions. As used in this clause –

VA Information system is the same as information system and means, pursuant to 38 U.S.C. 5727, a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information whether automated or manual.

VA sensitive information means all VA data, on any storage media or in any form or format, which requires protection due to the risk of harm that could result from inadvertent or deliberate disclosure, alteration, or destruction of the information and includes sensitive personal information. The term includes information where improper use or disclosure could adversely affect the ability of VA to accomplish its mission, proprietary information, records about individuals requiring protection under various confidentiality provisions such as the Privacy Act and the HIPAA Privacy Rule, and information that can be withheld under the Freedom of Information Act. Examples of VA sensitive information include the following: individually-identifiable medical, benefits, and personnel information; financial, budgetary, research, quality assurance, confidential commercial, critical infrastructure, investigatory, and law enforcement information; information that is confidential and privileged in litigation such as information protected by the deliberative process privilege, attorney work-product privilege, and the attorney-client privilege; and other information which, if released, could result in violation of law or harm or unfairness to any individual or group, or could adversely affect the national interest or the conduct of Federal programs.

(b) *General*. Contractor personnel assigned to work for or on behalf of VA must undergo a background investigation commensurate with the risk and sensitivity level designation associated with the work to be performed at the level indicated in the contract. The Contractor and subcontractors shall comply with VA Directive/Handbook 0710, Personnel Security and Suitability Program, which can be accessed at: <https://vaww.va.gov/vapubs/index.cfm>

(c) *Risk and Sensitivity Levels*. The following table identifies the risk and sensitivity levels that apply to any personnel providing services under this contract.

*VA Administrations, organizations and staff offices will use the OPM [Position Designation Tool](#).

Positions/Tasks Designated as Non-Sensitive Positions - Tier 1/Low Risk
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 1/Low Risk]</i>
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 1/Low Risk]</i>
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 1/Low Risk]</i>
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 1/Low Risk]</i>
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 1/Low Risk]</i>
Positions/Tasks Designated as Non-Sensitive Positions - Tier 2/Mod Risk
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 2/Mod Risk]</i>
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 2/Mod Risk]</i>
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 2/Mod Risk]</i>
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 2/Mod Risk]</i>
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 2/Mod Risk]</i>
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 2/Mod Risk]</i>
Positions/Tasks Designated as Non-Sensitive Positions - Tier 4/High Risk
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 4/High Risk]</i>
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 4/High Risk]</i>
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 4/High Risk]</i>
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 4/High Risk]</i>
<i>[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 4/High Risk]</i>

[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 4/High Risk]

Security clearances are granted to individuals with a specific requirement for access to classified material (for example, Confidential, Secret and Top Secret). Contractor personnel that are required to obtain a security clearance will be subject to a Tier 3 or Tier 5 investigation. The following sensitivity designations have been assigned for the identified Tier 3 and Tier 5 required by this contract:

Tier 3: *[Contracting Officer to enter “Non-Critical” or “Not Applicable” if no positions are identified as Tier 3]*

Tier 5: *[Contracting Officer to enter either Critical Sensitive and/or Special Sensitive, or “Not Applicable” if no positions are identified as Tier 5]*

(d) *Fitness*. The results from a background investigation are used to determine if an individual's fitness is sufficient for that individual to perform work for or on behalf of VA in the position identified in this contract. Contractor fitness determinations are made in accordance with 5 CFR Part 731.202.

Fitness requirements for employment are separate and distinct from job qualifications. If a Contractor or subcontractor employee is found to be unsuitable or unfit to provide services under this contract, the Contractor shall immediately remove the employee from working on this contract and take those necessary steps that restrict the employee's logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information.

The Contractor shall advise the employee that they are not permitted to access any VA controlled building or real property in relation to this contract.

The removal of an unfit Contractor or subcontractor employee does not alleviate the Contractor from satisfying the requirements of this contract. The Government will not reimburse the Contractor for any costs associated with the recruitment/replacement of an employee or subcontractor employee who is found to be unfit.

(e) *Identification Cards*. The Government will provide a Personal Identification Verification (PIV) card or other identification card, as necessary, to fit Contractor personnel who require physical access to VA facilities and/or logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information. Contractor and subcontractor personnel shall prominently display their PIV/identification card on their persons while working at a VA facility and shall present their PIV/identification card for inspection upon request by a VA official. The Contractor must surrender the employee or subcontractor employee's PIV/identification card in accordance with the requirements set forth in Directive/Handbook 0735 when any of the following events occur:

1. When no longer needed for contract performance.
2. Upon completion of the Contractor/subcontractor employee's employment.

3. Upon contract completion or termination.

(f) *Lost/stolen.* Immediately upon detection, the Contractor shall report a lost or stolen PIV/identification card to the Government authorities as identified in Directive/Handbook 0735. Within 48 hours of reporting the lost/stolen PIV/identification card, the Contractor shall submit to the Program Manager an incident report that describes the relevant facts and circumstances regarding the loss/theft. If the loss/theft was reported by the Contractor to the local police, the Contractor shall further submit a copy of the final police report to the Program Manager within 48 hours of the report being made available by the local police department. The Government will not reimburse the Contractor for any costs that result from lost/stolen PIV/identification card(s).

(g) *Regular Reporting.* The Contractor shall submit a status report to PIV Sponsor within 5 working days after the end of each calendar quarter and as requested by the Government in order to initiate contract closeout procedures. The report must provide the status of each contractor/subcontractor employee who is required to have a PIV/identification card during the performance of the contract. The report shall identify the Contractor and the contract number, and list the following status for each contractor/subcontractor employee who holds a PIV/identification card under this contract:

1. Contractor/subcontractor employee name..
2. Name of VA facility where Contractor/subcontractor employee works, if applicable.
3. Date background check submitted for Contractor/subcontractor employee.
4. Date PIV/identification card issued to Contractor/subcontractor employee.
5. Contractor/subcontractor employee's PIV/identification card number, as applicable.
6. Date Contractor/subcontractor employee no longer has need for PIV/identification card.
7. Date Contractor notified VA that PIV/identification card is no longer required.
8. Date Contractor returned PIV/identification card was returned to VA.

(h) *Flow down of clause.* The Contractor shall include the substance of this clause in subcontracts, third-party agreements, and BAA's, in which subcontractors, third-party servicers/employees, and business associates will perform functions where they will have physical access to a VA facility or logical access to VA data, information, VA sensitive information, or information technology or VA information system containing such data or information.

(End of Clause)

C.20 VAAR 852.211-70 EQUIPMENT OPERATION AND MAINTENANCE MANUALS (NOV 2018)

The Contractor shall follow standard commercial practices to furnish manual(s), handbook(s) or brochure(s) containing operation, installation, and maintenance instructions, including pictures or illustrations, schematics, and complete repair/test guides, as necessary, for technical medical equipment and devices, and/or other technical and mechanical equipment provided per CLIN(s) 0001-0101. The manuals, handbooks or brochures shall be provided in hard copy, soft copy or with electronic access instructions, consistent with standard industry practices for the equipment or device. Where applicable, the manuals, handbooks or brochures will include electrical data

and connection diagrams for all utilities. The documentation shall also contain a complete list of all replaceable parts showing part number, name, and quantity required.

(End of Clause)

C.21 VAAR 852.211-72 TECHNICAL INDUSTRY STANDARDS (NOV 2018)

(a) The Contractor shall conform to the standards established by: the Department of Veterans Affairs Healthcare Environment and Facilities Programs as to 0001-0101.

(b) The Contractor shall submit proof of conformance to the standard. This proof may be a label or seal affixed to the equipment or supplies, warranting that the item(s) have been tested in accordance with the standards and meet the contract requirement. Proof may also be furnished by the organization listed above certifying that the item(s) furnished have been tested in accordance with and conform to the specified standards.

(c) Offerors may obtain the standards cited in this provision by submitting a request, including the solicitation number, title and number of the publication to: the Department of Veterans Affairs

(d) The offeror shall contact the Contracting Officer if response is not received within two weeks of the request.

(End of Clause)

C.22 VAAR 852.219-70 VA SMALL BUSINESS SUBCONTRACTING PLAN MINIMUM REQUIREMENTS (JAN 2023) (DEVIATION)

(a) This clause does not apply to small business concerns.

(b) If the offeror is required to submit an individual subcontracting plan, the minimum goals for award of subcontracts to certified service-disabled veteran-owned small business and certified veteran-owned small business SDVOSB/VOSB shall be at least commensurate with the Department's annual SDVOSB/VOSB subcontracting goals.

(c) For a commercial plan, the minimum goals for award of subcontracts to SDVOSB/ VOSB shall be at least commensurate with the Department's annual service-disabled veteran-owned small business and veteranowned small business subcontracting goals for the total value of projected subcontracts to support the sales for the commercial plan.

(d) To be credited toward goal achievements, SDVOSB/VOSBs must be certified and listed in the SBA certification database at <https://veterans.certify.sba.gov/> (see 13 CFR 128) and be otherwise eligible in accordance with SBA size standards for the acquisition and limitations on subcontracting requirements set forth in SBA regulations (see 13 CFR 121, 125 and 128).A contractor may reasonably rely on a subcontractor's status as shown in the SBA certification database as of the date of subcontract award, provided the contractor retains records of the results of the SBA certification database query.

(e) The Contractor shall annually submit a listing of SDVOSB/VOSB (for which credit toward goal achievement is to be applied) for review by personnel in the Office of Small and

Disadvantaged Business Utilization. Use VA Form 0896A, Report of Subcontracts to Small and Veteran-Owned Business.

(f) Pursuant to 38 U.S.C. 8127(g), any business concern that is determined by VA to have willfully and intentionally misrepresented a company's SDVOSB/VOSB status is subject to debarment for a period of not less than five years. This includes the debarment of all principals in the business.

(End of Clause)

C.23 VAAR 852.219-73 VA NOTICE OF TOTAL SET-ASIDE FOR CERTIFIED SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESSES (JAN 2023) (DEVIATION)

(a) *Definition.* for the Department of Veterans Affairs, “*Service-disabled Veteran-owned small business concern or SDVOSB*”:

(1) Means a small business concern—

(i) Not less than 51 percent of which is owned by one or more service-disabled Veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled Veterans or eligible surviving spouses (see VAAR 802.201, Surviving Spouse definition);

(ii) The management and daily business operations of which are controlled by one or more service-disabled Veterans (or eligible surviving spouses) or, in the case of a service-disabled Veteran with permanent and severe disability, the spouse or permanent caregiver of such Veteran;

(iii) The business meets Federal small business size standards for the applicable North American Industry Classification System (NAICS) code identified in the solicitation document;

(iv) The business has been certified for ownership and control pursuant to 38 U.S.C. 8127, 13 CFR 128, and is listed as certified in the SBA certification database at <https://veterans.certify.sba.gov/>; and

(v) The business agrees to comply with VAAR subpart 819.70 and Small Business Administration (SBA) regulations regarding small business size, government contracting, and the Veteran Small Business Certification Program at 13 CFR parts 121, 125, and 128.

(2) The term “Service-disabled Veteran” means a Veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

(3) The term “small business concern” has the meaning given that term under section 3 of the Small Business Act (15 U.S.C. 632).

(4) The term “small business concern owned and controlled by Veterans with service-connected disabilities” has the meaning given the term “*small business concern owned and controlled by service-disabled veterans*” under section 3(q)(2) of the Small Business Act (15 U.S.C. 632(q)(2)).

(5) The term “*SDVOSB participant*” or *certified SDVOSB* means a small business that has been certified in the SBA Veteran Small Business Certification Program and listed in the SBA certification database (see 13 CFR 128.102).

(b) *General*. In order for a concern to submit an offer and be eligible for the award of an SDVOSB set-aside or sole source contract, the concern must qualify as a small business concern under the size standard corresponding to the NAICS code assigned to the contract and be listed as an SDVOSB participant in the SBA certification database as set forth in 13 CFR 128.

(1) Offers received from entities that are not certified SDVOSBs and listed in the SBA certification database at the time of offer shall not be considered.

(2) Any award resulting from this solicitation shall be made to a certified SDVOSB listed in the SBA certification database who is eligible at the time of submission of offer(s) and at the time of award.

(3) The requirements in this clause apply to any contract, order or subcontract where the firm receives a benefit or preference from its designation as an SDVOSB, including set-asides, sole source awards, and evaluation preferences.

(c) *Representation*. Pursuant to 38 U.S.C. 8127(e), only certified SDVOSBs listed in the SBA certification database are considered eligible to receive award of a resulting contract. By submitting an offer, the prospective contractor represents that it is an eligible and certified SDVOSB as defined in this clause, 13 CFR 121, 125, and 128, and VAAR subpart 819.70.

(d) *Agreement/LOS certification*. When awarded a contract action, including orders under multipleaward contracts, an SDVOSB agrees that in the performance of the contract, the SDVOSB shall comply with requirements in VAAR subpart 819.70 and SBA regulations on small business size, and government contracting programs at 13 CFR part 121 and part 125, including the non-manufacturer rule and limitations on subcontracting (LOS) requirements in 13 CFR 121.406(b) and 13 CFR 125.6. For the purpose of limitations on subcontracting, only certified SDVOSBs listed in the SBA certification database (including independent contractors) shall be considered eligible and/or “similarly situated” (i.e., a firm that has the same small business program status as the prime contractor). An otherwise eligible firm further agrees to comply with the required LOS certification requirements in this solicitation (see 852.219–75 or 852.219–76 as applicable). These requirements are summarized as follows:

(1) *Services*. In the case of a contract for services (except construction), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance to firms that are not certified SDVOSBs listed in the SBA certification database (excluding direct costs to the extent they are not the principal purpose of the acquisition and the SDVOSB/ VOSB does not provide the service, such as airline travel, cloud computing services, or mass media purchases). When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract.

(2) *Supplies/products*.

(i) In the case of a contract for supplies or products (other than from a non-manufacturer of such supplies), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not certified SDVOSBs listed in the SBA certification database. When a contract includes both supply and services, the 50 percent limitation shall apply only to the supply portion of the contract.

(ii) In the case of a contract for supplies from a non-manufacturer, the SDVOSB prime contractor will supply the product of a domestic small business manufacturer or processor, unless a waiver as described in 13 CFR 121.406(b)(5) has been granted. Refer to 13 CFR 125.6(a)(2)(ii) for guidance pertaining to multiple item procurements.

(3) *General construction.* In the case of a contract for general construction, the SDVOSB prime contractor will not pay more than 85% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not certified SDVOSBs listed in the SBA certification database.

(4) *Special trade construction contractors.* In the case of a contract for special trade contractors, no more than 75% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, may be paid to firms that are not certified SDVOSBs listed in the SBA certification database.

(5) *Subcontracting.* An SDVOSB subcontractor must meet the NAICS size standard assigned by the prime contractor and be certified and listed in the SBA certification database to count as similarly situated. Any work that a first tier SDVOSB subcontractor further subcontracts will count towards the percent of subcontract amount that cannot be exceeded. For supply or construction contracts, the cost of materials is excluded and not considered to be subcontracted. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the portion of the contract with the preponderance of the expenditure upon which the assigned NAICS is based. For information and more specific requirements, refer to 13 CFR 125.6.

(e) *Required limitations on subcontracting compliance measurement period.* An SDVOSB shall comply with the limitations on subcontracting as follows:

☐ By the end of the base term of the contract or order, and then by the end of each subsequent option period; or

☐ By the end of the performance period for each order issued under the contract.

(f) *Joint ventures.* A joint venture may be considered eligible as an SDVOSB if the joint venture complies with the requirements in 13 CFR 128.402 and the managing joint venture partner makes the representations under paragraph (c) of this clause. A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (d) of this clause will be performed by the aggregate of the joint venture participants.

(g) *Precedence.* The VA Veterans First Contracting Program, as defined in VAAR 802.101, subpart 819.70, and this clause, takes precedence over any inconsistencies between the

requirements of the SBA Veteran Small Business Certification Program and the VA Veterans First Contracting Program.

(h) *Misrepresentation*. Pursuant to 38 U.S.C. 8127(g), any business concern, including all its principals, that is determined by VA to have willfully and intentionally misrepresented a company's SDVOSB status is subject to debarment from contracting with the Department for a period of not less than five years (see VAAR 809.406–2 Causes for Debarment).

(End of Clause)

C.24 VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING—CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (JAN 2023) (DEVIATION)

(a) Pursuant to 38 U.S.C. 8127(l)(2), the offeror certifies that—

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows:

(i) ☒ Services. In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) ☐ General construction. In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) ☐ Special trade construction contractors. In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false,

fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/ VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

- (i) Referral to the VA Suspension and Debarment Committee;
- (ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and
- (iii) Prosecution for violating section 18 U.S.C. 1001.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification:

I hereby certify that if awarded the contract, insert name of offeror will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of insert name of offeror.

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address:

(End of Clause)

C.25 VAAR 852.222-71 COMPLIANCE WITH EXECUTIVE ORDER 13899 (DEVIATION)(APR 2025)

(a) The contractor shall comply with Executive Order 13899, Combating Anti-Semitism, pursuant to Title VI of the Civil Rights Act of 1964 (Title VI), 42 U.S.C. 2000d et seq.

(b) The contractor shall timely disclose, in writing, to the Contracting Officer, whenever, in connection with the award, performance, or closeout of this contract or any subcontract thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed a violation under Executive Order 13899, Combating Anti-Semitism pursuant to the Civil Rights Act of 1964 (Title VI), 42 U.S.C. 2000d et seq.

(c) The contractor shall include the terms and conditions of this clause in every subcontract or purchase order so that these terms will be binding on every subcontractor or vendor.

(End of Clause)

C.26 VAAR 852.228-70 BOND PREMIUM ADJUSTMENT (JAN 2008)

When net changes in original contract price affect the premium of a Corporate Surety Bond by \$5 or more, the Government, in determining the basis for final settlement, will provide for bond premium adjustment computed at the rate shown in the bond.

(End of Clause)

C.27 VAAR 852.232-72 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018)

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001;

(2) *Designated agency office* means the office designated by the purchase order, agreement, or contract to first receive and review invoices. This office can be contractually designated as the receiving entity. This office may be different from the office issuing the payment;

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in

paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests;

(4) *Invoice payment* has the meaning given in FAR 32.001; and

(5) *Payment request* means any request for contract financing payment or invoice payment submitted by the contractor under this contract.

(b) *Electronic payment requests*. Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Government-wide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Data transmission*. A contractor must ensure that the data transmission method and format are through one of the following:

(1) VA's Electronic Invoice Presentment and Payment System at the current website address provided in the contract.

(2) Any system that conforms to the X12 electronic data interchange (EDI) formats established by the Accredited Standards Center (ASC) and chartered by the American National Standards Institute (ANSI).

(d) *Invoice requirements*. Invoices shall comply with FAR 32.905.

(e) *Exceptions*. If, based on one of the circumstances in this paragraph (e), the Contracting Officer directs that payment requests be made by mail, the Contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. Submission of payment requests by mail may be required for—

(1) Awards made to foreign vendors for work performed outside the United States;

(2) Classified contracts or purchases when electronic submission and processing of payment requests could compromise the safeguarding of classified or privacy information;

(3) Contracts awarded by contracting officers in the conduct of emergency operations, such as responses to national emergencies;

(4) Solicitations or contracts in which the designated agency office is a VA entity other than the VA Financial Services Center in Austin, Texas; or

(5) Solicitations or contracts in which the VA designated agency office does not have electronic invoicing capability as described above.

(End of Clause)

C.28 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)

The Contracting Officer reserves the right to designate an Administrative Contracting Officer (ACO) for the purpose of performing certain tasks/duties in the administration of the contract. Such designation will be in writing through an ACO Letter of Delegation and will identify the

responsibilities and limitations of the ACO. A copy of the ACO Letter of Delegation will be furnished to the Contractor.

(End of Clause)

C.29 MANDATORY WRITTEN DISCLOSURES

Mandatory written disclosures required by FAR clause 52.203-13 to the Department of Veterans Affairs, Office of Inspector General (OIG) must be made electronically through the VA OIG Hotline at <https://www.vaoig.gov/hotline/online-forms> and clicking on "FAR clause 52.203-13 Reporting." If you experience difficulty accessing the website, call the Hotline at 1-800-488-8244 for further instructions.

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

D.1 LIST OF ATTACHMENTS

ATTACHMENT 01_All CLINs - SCOPE Nationwide Elevator Modernization_04162026

ATTACHMENT 02_All CLINs - SPECIFICATIONS Nationwide Elevator Modernization_05062026

ATTACHMENT 03_All CLINs – Drawing 1 of 1_VHA Elevator Finish Standards_03242026

ATTACHMENT 04_All CLINs – H18-8 SEISMIC DESIGN REQUIREMENTS

ATTACHMENT 05_ALL CLINs –MILESTONE PAYMENT SCHEDULE_0403

ATTACHMENT 06_All CLINs – MASTER SPREADSHEET Nationwide Elevator Modernization_04222026

ATTACHMENT 07_All CLINs – PAST PERFORMANCE QUESTIONNAIRE

ATTACHMENT 08_CLINs 0001-0013 ONLY – VAAR 852.219-75 LIMITATIONS ON SUBCONTRACTING

ATTACHMENT 9A – CLINs 0001-0013 Wage Determinations

ATTACHMENT 9B – CLINs 0014-0034 Wage Determinations

ATTACHMENT 9C – CLINs 0035-0053 Wage Determinations

ATTACHMENT 9D – CLINs 0054-0075 Wage Determinations

ATTACHMENT 9E – CLINs 0076-0101 Wage Determinations

See attached document: Attachment 01_ALL CLINs - Scope Nationwide Elevator Modernization_04162026.

See attached document: Attachment 02_ALL CLINs - Specifications Nationwide Elevator Modernization_05062026.

See attached document: Attachment 03_ALL CLINs - Drawing 1 of 1_VHA Elevator Finish Standards_03242026.

See attached document: Attachment 04_ALL CLINs - H18-8 Seismic Design Requirements.

See attached document: Attachment 05_ALL CLINs Milestone Payment Schedule_0403.

See attached document: ATTACHMENT 06_ALL CLINs - Master Spreadsheet Nationwide Elevator Modernization_04222026.

See attached document: Attachment 07_ALL CLINs - Past Performance Questionnaire.

See attached document: Attachment 08_CLINS 0001-0013 ONLY - Limitations on Subcontracting.

See attached document: ATTACHMENT 9A - CLINs 0001-0013 Wage Determinations.

See attached document: ATTACHMENT 9B - CLINs 0014-0034 Wage Determinations.

See attached document: ATTACHMENT 9C - CLINs 0035-0053 Wage Determinations.

See attached document: ATTACHMENT 9D - CLINs 0054-0075 Wage Determinations.

See attached document: ATTACHMENT 9E - CLINs 0076-0101 Wage Determinations.

End of Document